

PATHWAY TO OCEANS REFORM

EDS Oceans Reform Final Report

Raewyn Peart



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List of abbreviations

DOC	Department of Conservation
EBM	Ecosystem-based management
EDS	Environmental Defence Society
EEZ	Exclusive economic zone
EEZ Act	Exclusive Economic Zone and Continental Shelf (Environmental Effects) Act 2012
EPA	Environmental Protection Authority
MACA Act	Marine and Coastal Area (Takutai Moana) Act 2011
MFE	Ministry for the Environment
MPI	Ministry for Primary Industries
MPA	Marine protected areas
MPA Policy	Marine Protected Areas: Policy and Implementation Plan 2005
MSP	Marine spatial planning
PCE	Parliamentary Commissioner for the Environment
RMA	Resource Management Act 1991
Te Tiriti	Te Tiri o Waitangi/Treaty of Waitangi

Acts referred to

Biosecurity Act 1993
Climate Change Response Act 2002
Conservation Act 1987
Continental Shelf Act 1964
Crown Minerals Act 1991
Environment Act 1986
Environmental Reporting Act 2015
Exclusive Economic Zone and Continental Shelf (Environmental Effects) Act 2012
Fast-track Approvals Act 2024
Fiordland (Te Moana o Atawhenua) Marine Management Act 2005
Fisheries Act 1996
Hauraki Gulf Marine Park Act 2000
Hauraki Gulf / Tīkapa Moana Marine Protection Bill 2023
Heritage New Zealand Pouhere Taonga Act 2014
Kaikōura (Te Tai o Marokura) Marine Management Act 2014
Māori Commercial Aquaculture Claims Settlement Act 2004
Māori Fisheries Act 2004
Marine and Coastal Area (Takutai Moana) Act 2011
Marine Mammals Protection Act 1978
Marine Reserves Act 1971
Maritime Transport Act 1994
Resource Management Act 1991
Submarine Cables and Pipelines Protection Act 1996
Sugar Loaf Islands Marine Protected Area Act 1991
Treaty of Waitangi (Fisheries Claims) Settlement Act 1992
Wildlife Act 1953

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1 Introduction



Community marine group at Ōrere Point

Aotearoa New Zealand faces considerable challenges in managing its oceans well. Not only are they very large, spanning some 4 million km² (and around 15 times the country's land area), they are extremely diverse, extending across two colliding tectonic plates and subtropical to subantarctic waters (see Figure 1.1). This marine area supports the large bulk of the country's wildlife (estimated to be up to 85 per cent), with over half of the some 17,000 reported marine species being endemic. Many more forms of marine life are yet to be discovered.¹

"A 2008 global study on known marine wildlife found that New Zealand ranked the highest in the world for our proportion of native species."² (Department of Conservation)

It is estimated that the marine (or 'blue') economy provides 70,000 jobs and contributes \$7.4 billion to the national economy each year.³ The largest sector, by far, is coastal tourism (comprising 41 per cent of the total) followed by infrastructure and transport (21%) and seafood (15%). Minerals is the smallest sector at 14 per cent (see Figure 1.2).⁴

With one of the larger exclusive economic zones (EEZ) in the world, there are likely significant untapped opportunities to grow the blue economy further. For example, the marine tourism sector including dive tourism associated with marine conservation (see spotlight below), likely has considerable expansion opportunities. Emerging sectors include blue biotechnology, blue carbon and renewable energy. There has also been interest in deepsea mining for ironsand and

phosphate nodules with potential in maganese nodules, polymetallic sulphides and methane hydrates.⁵

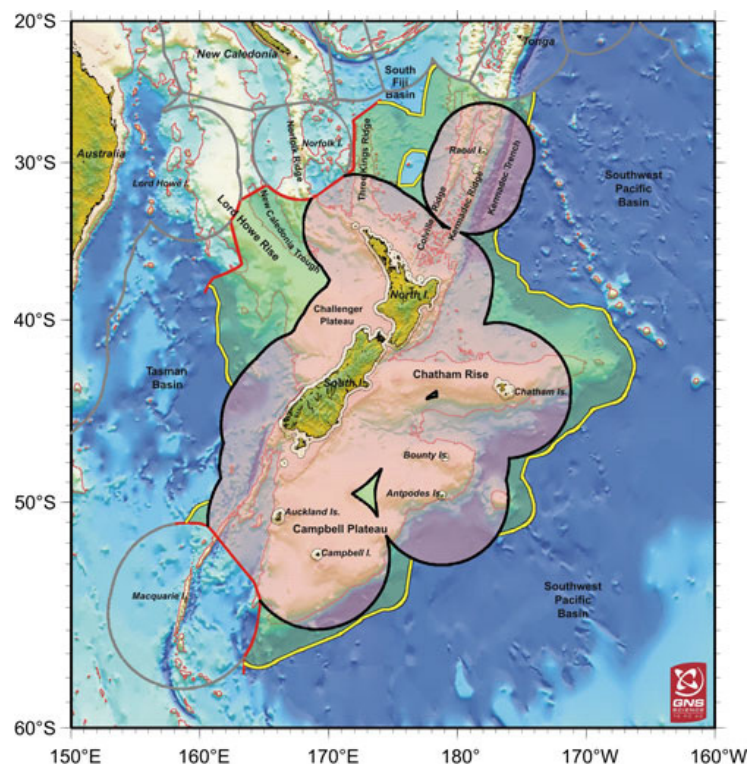


Figure 1.1: Aotearoa New Zealand's ocean realm (Source: Ministry of Foreign Affairs and Trade)

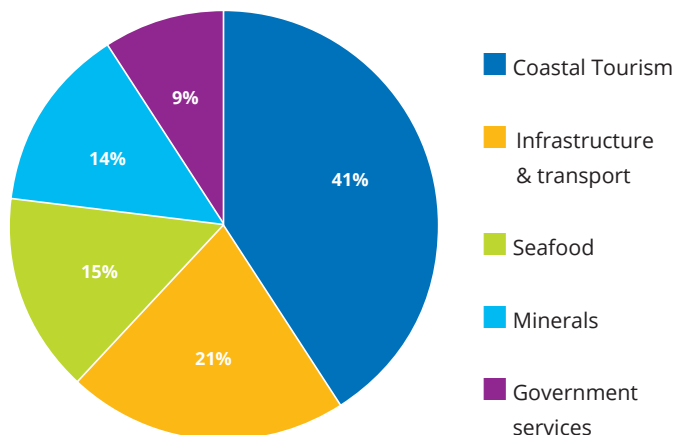


Figure 1.2: Sectoral contributions to the blue economy, 2017 (Source: Yeoman et al)⁶

Because of the significant commercial benefits the country derives from the oceans, non-market values can be easily overlooked. But it is critical to recognise the enormous cultural importance of the oceans to Māori who whakapapa back to Tangaroa and Hinemoana (male and female deities of the sea) and their respective children (all marine species).⁷ Many non-Māori also have deep spiritual and cultural relationships with the marine area.

Spotlight on dive tourism



"In just a few years, the [international] market size for diving tourism has seen rapid expansion. Growth is predicted to continue from \$4.06 billion in 2024, reaching \$4.52 billion in 2025, with a compound annual growth rate of 11.4%. This ... has been driven by a variety of factors, including enhanced disposable income, the growing appeal of adventure tourism, heightened consciousness about marine conservation efforts, the introduction of dive training schemes, and advancements in travel infrastructure. The market size for diving tourism is projected to ... [reach] \$6.87 billion by 2029."⁸

"Māori tradition reveres the sea as the home of Tangaroa, its guardian and protector. The sea provided sustenance to Māori and offered a realm of inspiration as well as immense opportunity."⁹ (Houkamau and Pouwhare, 2025)

Significant recreational and non-use values associated with the oceans include knowing that certain species and habitats exist, the desire to bequeath them to future generations, and a willingness to pay to preserve them in the broader public interest. Many people, for example, obtain value from knowing that Māui and Hector's dolphins are safeguarded for future generations despite never personally seeing one in the wild.¹⁰ It has been estimated that these values (along with cultural use), comprise almost half the total economic benefits derived from the sea.¹¹

Spotlight on the economic value of the Hauraki Gulf

A 2023 assessment of ecosystem services provided by the Hauraki Gulf estimated their value at over \$5 billion per year. Within this, provisioning services (including ports, shipping, aquaculture, fishing and sand extraction) were valued at \$1.9 billion, cultural services (including recreation and property value uplift) were valued at \$3 billion, and regulating and support services (including water quality, biodiversity health and carbon sequestration) at \$188 million. Interestingly, recreational fishing (at \$187 million) was six times the value of commercial fishing (at just \$29.8 million) and both these were dwarfed by non-extractive recreational use valued at \$2.5 billion.¹² These estimates do not include Māori cultural values, so the overall value of the Gulf would be greater than this assessment indicates.



Although often perceived as wild and untouched, the oceans are experiencing increasing and profound impacts from human activity. Absorbing most of the excess heat and much carbon dioxide from anthropogenic carbon emissions, the oceans are rapidly warming, rising and acidifying.¹³ It is the inshore coastal ecosystems that are degrading the most, due to multiple anthropogenic pressures from land and sea activities.¹⁴

Many marine species are now threatened with extinction, including 91 per cent of indigenous marine birds (82 of 90), 55 per cent of assessed indigenous marine invertebrates (443 of 786) and 22 per cent of indigenous marine mammals (10 of 49).¹⁵



Flesh-footed shearwater, Hauraki Gulf

“The marine environment, a cornerstone of New Zealand’s identity and prosperity, faces unprecedented challenges. The intensification of human activities, climate change impacts, and the growing demands on marine resources have increased tensions, stressing the delicate ecological balance. The status quo is no longer tenable...”¹⁶ (Sustainable Seas National Science Challenge, 2024)

Whatever perspective one has, it is clear we need to look after our oceans better, given their importance to us all. This is the focus of the Environmental Defence Society’s (EDS) Oceans Reform Project. Phase One of the project reviewed the current oceans management system, considered how the management toolkit might be improved, explored the design of oceans-related laws and institutions, and pondered what a new model might look like. The results of that work were published in 2022 in ‘The Breaking Wave’ report.¹⁷

Phase Two of the project has focused on developing tangible propositions for reform and setting out a pathway for their implementation. Working Paper 1 ‘Restoring the Sea’ (released in December 2024) explored experiences with, and the potential applicability of, marine spatial planning (MSP) to the country’s oceans. It also developed initial proposals for a National MSP Framework.¹⁸ Working Paper 2 ‘Protecting the Sea’ (released in May 2025) focused on the development of a new marine protected area (MPA) statute.¹⁹

EDS has also undertaken three place-based case studies of marine management focused on the Marlborough Sounds,²⁰ the Otago coast²¹ and the Bay of Islands.²² The purpose of these case studies was to examine challenges at the frontline of marine management to inform the design of a strengthened oceans framework at the national level.

Specific propositions for oceans reform including an Oceans Commission, National Oceans Strategy, National MSP Strategy and Oceans Act have been tested previously by a range of actors. This includes a diverse group of business, conservation and Māori leaders convened by The Lever Room²³ and those attending the EDS Oceans Symposium held on 12 May 2025 in Auckland.

The overarching message from the 2025 EDS Oceans Symposium was the need to act now, the need to act together, and the need to put the health of the oceans first.²⁴

This final report builds on this earlier work as well as that undertaken by many others. They include the Parliamentary Commissioner for the Environment (PCE), The McGuiness Institute, the Sustainable Seas National Science Challenge, the Office of the Prime Minister’s Chief Science Advisor, The Lever Room, universities, and many other researchers.

Over the past two decades there have been numerous analyses and many recommendations for oceans reform in Aotearoa New Zealand. This report does not seek to add to them, but instead distils key propositions that have broad support, and sets out a pathway for their implementation. Reform is long overdue. It is time to get on with it.

What is needed now, is not more analyses of options for oceans reform, but action to ensure we make tangible reform progress. Supporting such action is the intent of this report.

In Part One of this report we set out the case for reform including the increasing and compounding pressures on the oceans, the need to better address Te Tiriti o Waitangi/Treaty of Waitangi (Te Tiriti) obligations within the oceans management system, and the current system long being not fit for purpose. Part Two of the report sets out proposals for reform including a National Oceans Strategy, National MSP Framework,

Marine Protection Areas Act and an Oceans Commission. Part Three of the report sets out the pathway for reform including a series of steps to implement the recommendations. It also sets out options for further institutional reform. The report concludes with an overall summary of recommendations.



Common dolphins, Hauraki Gulf

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1

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2 Increasing and compounding pressures on oceans



'Boil up' near Cape Brett

Pressures on the country's oceans are rapidly increasing. Accelerating climate change impacts are compounding long-standing chronic pressures on the marine environment including excess sedimentation, bottom trawling and dredging, and over-fishing. Benthic habitat loss is widespread and ongoing, and the consequent reduced resilience of marine ecosystems, has increased their susceptibility to exotic invasive species. We explore these pressures, which are challenging the country's already stretched oceans management system, in the sections below.

2.1 Rapid seawater warming

Since 1971, around 90 per cent of excess heat from anthropogenic greenhouse gas emissions has been absorbed by the oceans, along with roughly 25 per cent of excess carbon dioxide. Ocean warming is now irreversible on centennial to millennial timescales.¹

The warming of oceans around Aotearoa New Zealand is accelerating, and over the past three decades, has occurred at a rate 34 per cent higher than the global average. The most intense warming has been in the Chatham region where, over the past 20 years, the sea has increased in temperature at triple the global mean.²

More disturbingly, it is now clear that our oceans are part of an oceanic band (at around 40 degrees South) that is experiencing greater heating than seawater anywhere else on the planet. This is due to a polewards

shift of jet streams high up in the atmosphere (and associated storm tracks) which in turn have shifted oceanic currents.³

Seawater temperature affects the primary productivity of the oceans and therefore the abundance of fisheries. In particular, warmer waters are associated with reduced zooplankton abundance.⁴ This is concerning, because zooplankton plays a critical role in transferring energy from phytoplankton (the ocean's primary producers) to marine life higher up the food web.⁵

"Comprising the base of the marine food web, how phytoplankton respond to climate change will have cascading effects throughout marine ecosystems, ultimately affecting living marine resources, such as fishery yields."⁶ (Krumhardt et al, 2016)

Until recently, due to warming, we were seeing productivity reductions in the warmer subtropical waters and the Tasman Sea, and increases in the cooler subantarctic waters. But disturbingly, since mid-2019, productivity has decreased in subantarctic waters as well. This indicates "the possibility of a crossed threshold where further warming might further inhibit rather than enhance primary productivity."⁷ We are well past 'peak' fisheries production, with the total commercial catch plummeting more than 30 percent over the past two decades (see Figure 2.1).

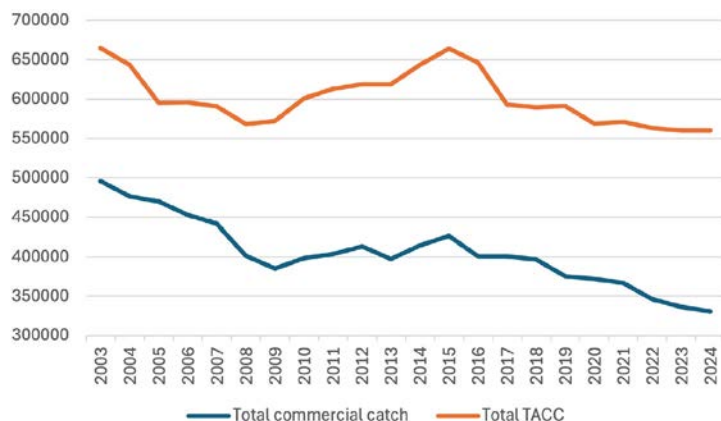


Figure 2.1: Total commercial catch and total allowable commercial catch for all commercially caught species 2003-2024 (Source: Fisheries NZ)

Spotlight on starving snapper

In 2019, commercial fishers started reporting ‘skinny’ or ‘milky’ snapper in their catch. The prevalence of the milky-fleshed fish increased markedly over the subsequent three years, and also affected the recreational harvest.⁸ The odd-looking fish were most frequently caught in the inner Hauraki Gulf, and around Doubtless Bay to the north, during the winter months.⁹

Testing by the Ministry for Primary Industries’ (MPI) Animal Health Laboratory found the fish to have poor body condition. In particular, their muscles had degenerated, and their livers had atrophied and accumulated iron, all signs that the fish had “undergone a prolonged period of starvation”.¹⁰ This was somewhat surprising as snapper has an “extremely varied” diet and the ability “to feed on almost any animal food available”.¹¹



A subsequent investigation by NIWA explored reasons for the starvation event. A number of potential contributors were identified, but scientists were not able to fully explain the syndrome, highlighting how much we still have to learn about marine dynamics.

One likely driver was increased seawater temperature, which elevates the metabolism of fish, and therefore their demand for food. If plentiful food is available, this can result in increased growth rates. However, if there is a food shortage, growth rates reduce and the fish can eventually starve.¹²

In this case, it appears that seawater warming was coupled with reduced food supply. An extended La Niña event (from July 2020 to February 2023) reduced upwelling off the east coast of the North Island, thereby reducing nutrient supply to the surface from nutrient-rich bottom waters. As seawater in the outer Gulf is nitrogen limited, this lack of nutrients reduced phytoplankton production, and therefore the availability of food for marine organisms further up the food web. In addition, the warmer seawater itself further reduced plankton production. At the same time, the snapper stock had been rebuilding, so there were more mouths to feed.¹³

As the La Niña weakened, the number of milky snapper in catches reduced. However, given predicted ongoing reduction in marine productivity due to seawater warming (which will be exacerbated by longer marine heatwaves) it seems likely we will see more such starvation events. It is unclear what impact the lack of food has had on other species within the marine ecosystem but it is unlikely to be positive. Such dynamics will need to be factored into future oceans management decision-making.

Seawater warming is also driving changes in species distribution. Warm water species such as John dory, kahawai and snapper are now noticeably more prevalent in South Island waters.¹⁴ Cold water species such as red cod have fewer spatial options, and appear to be in serious decline, as highlighted by the stark drop in commercial landings over recent years (see Figure 2.2). This is of concern, not only for holders of red cod quota, but because threatened hoiho (yellow-eyed penguin) and Hector’s dolphin have historically relied on red cod as a key part of their diet.¹⁵ Heavy fishing during the 1990s and 2000s, which significantly reduced the red cod spawning biomass, has likely reduced the resilience of red cod populations to climate change.¹⁶

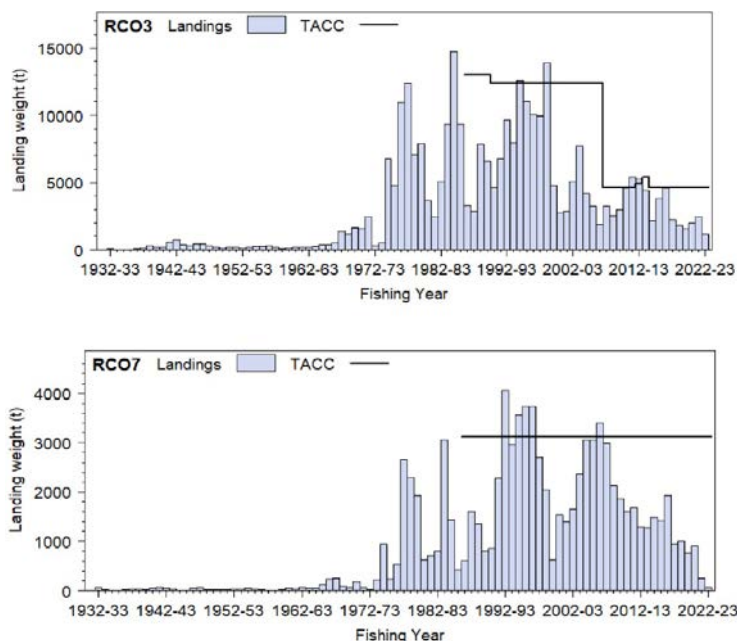


Figure 2.2: Landings and total allowable commercial catch in RCO3 (south-east coast) and RCO7 (south-west coast) (Source: Fisheries NZ)

2.2 More frequent and longer marine heatwaves

On top of seawater warming is the more frequent occurrence, and longer duration, of marine heatwaves. These have driven seawater temperatures up to 6°C higher than the norm.¹⁷ For example at Leigh, in the Hauraki Gulf, 313 marine heatwave days were recently recorded over a 12 month period.¹⁸ In the Bay of Plenty, abnormal heat lasted for more than a year.¹⁹ The average number of coastal marine heatwave days could double by the end of the century.²⁰

Marine heatwaves are also occurring in offshore waters. A particularly warm 'spot' has developed just south of the Chatham Islands, where subtropical waters are "pushing into an area where they didn't use to be". Marine heatwaves are now persisting in that area for more than 200 days a year.²¹

Such events can have a particularly disruptive effect on marine life. For example, the 2016-17 marine heatwave caused the die off of bull and bladder kelp along the Otago coast (see spotlight). An exceptional period of warm water in 2020 caused a mass die-off of thousands of mussels in Northland.²² In 2022, a warming event that hit Fiordland and the west coast of the South Island saw seawater temperatures 5°C hotter than usual and caused the mass bleaching of sponges.²³

Spotlight on marine heatwaves and kelp dieback

The Otago coast supports extensive kelp forests that serve as important primary producers, moderate wave and tidal action, provide significant habitat for larval settlement, and act as a refuge for juvenile species. Kelp forests have been found to host more than 100 different species.²⁴ Their primary production can directly contribute up to half the biomass of coastal fish.²⁵ They support a number of commercially important species including rock lobster, pāua, kina, blue cod, red cod, blue moki and butterfish.²⁶



Dieback of both bladder and bull kelp has been observed during marine heatwaves, with localised extinction of bull kelp, and substantial declines in bladder kelp. On the north Otago coast, bladder kelp declined in area by an average of 54 per cent after the 2016-17 marine heatwave. The decline in one area (an offshore reef south of Shag Point) was 93 per cent.²⁷

Sea-surface water temperatures off the Otago coast generally peak at just over 14°C in summer. Once seawater temperatures rise above 15°C, kelp fertility decreases, with adult plants dying if temperatures exceed 18-19°C for more than a few days.²⁸ Once temperatures reduce, kelp forests can recover, but such recovery will likely be impeded as seawater warms and marine heatwaves become more frequent.

Where kelp has been impacted by marine heatwaves, sedimentation has served to exacerbate the impacts, causing greater die-back.²⁹ This is thought due to the warmer temperatures creating greater metabolic demand within the kelp plants, which cannot be met in low light conditions caused by sedimentation, due to photosynthesis being impeded.³⁰ Both bladder and bull kelp species are classified as threatened – at risk – declining. The loss of kelp forest has been associated with a gradual decline in the local abundance of rock lobster, pāua, kina, blue cod and butterfish.³¹

Marine heatwaves can directly impact fish harvests, depending on their intensity. Moderate marine heatwaves can have a positive effect, potentially due to the heat encouraging fish to aggregate, which makes them easier to catch. But extreme marine heatwaves have a predominantly negative impact. This is thought “likely due to altered distribution of fish or severe stress on marine life, leading to habitat loss or decreased survival rates of fish”.³²

“Intense MHWs are associated with substantial decreases in fish catch, suggesting significant disruptions to fish populations and their habitats.”³³ (Lachenheb et al, 2024)

2.3 Chronic excess sedimentation

Excess sediment is enormously disruptive to marine life. It smothers benthic habitats, killing and displacing filter feeders, including shellfish. It changes biogeochemical gradients affecting benthic microalgae (including those on which scallops feed). It clogs the feeding parts of filter feeders and the gills of fish, impedes the ability of fish to find food, and causes chronic effects to their condition and behaviour.³⁴

One pervasive impact of sedimentation is ‘coastal darkening’, where seawater is clouded by silt, restricting light penetration. This is particularly damaging to juvenile kelp which grow deep down in the water column. Off the Otago coast, at a water depth of 10 metres, light levels have been reduced by half. Coastal darkening can also favour invasive seaweed species, such as *Undaria*, which can grow more quickly than native kelp in low light conditions.³⁵

Studies of sedimentation rates have identified increases of up to 20 times, compared to pre-European settlement, due to the removal of indigenous vegetation and establishment of new land uses. Te Hoiere/ Pelorus Sound is particularly impacted, where some 259,000 tonnes of sediment are deposited annually into the Havelock estuary. Soft mud now covers 77 per cent of the unvegetated intertidal habitat.³⁶

Sources of sediment are multiple and can include any land use that disturbs vegetation and/or the soil. Major contributors include earthworks, forestry harvesting and tracking, grazing of steep land, devegetated river banks, road cuttings and unsealed roads. The loss of 90 per cent of the country’s wetland areas, and the straightening and confinement of many rivers, has reduced the likelihood that sediment mobilised by such activities will be captured by natural systems before reaching the sea.

On top of new sediment discharges, historic depositions in the marine area can be resuspended by wave action, thereby increasing the amount of fine silt in the water column. Such resuspension is exacerbated by seafloor disturbing practices such as bottom trawling and dredging.³⁷

Climate change will almost certainly exacerbate sedimentation in the absence of significant action to reduce its sources. A warmer atmosphere absorbs more moisture, leading to heavier rain events, which drive more sediment off the land, into waterways and eventually the sea.³⁸ This all highlights the critical importance of creating a stronger linkage between management of catchments, and management of coastal waters, and the urgent need to implement much more effective land use and sediment control measures.

2.4 Widespread ongoing biogenic habitat loss

There has been extensive loss of biogenic habitat around the coast as well as on bottom trawled offshore areas such as seamounts. Such habitats play critical roles in supporting the diversity, abundance and productivity of marine life including fisheries. They also are important in supporting the resilience of marine ecosystems to stressors such as climate change.

“For juvenile fish there may be ‘habitat bottlenecks’, where the limited availability of especially important habitats may constrain fish production, and ‘habitat chains’, where fish use a sequence of habitats as they grow.”³⁹ (Morrison et al, 2008)

For example, historic records indicate that much of the Hauraki Gulf was once encrusted with a rich variety of marine organisms including green-lipped mussel beds, horse mussel beds, bryozoan mounds, seagrass beds and sponge gardens.⁴⁰ Most of these have now been lost due to a combination of bottom trawling, dredging and sedimentation. Some of these losses may be irreversible. For example, dredging destroyed the extensive green-lipped mussel beds in the Gulf,⁴¹ and attempts to re-establish self-sustaining beds over the past decade have yet to succeed.

Research in the Marlborough Sounds has also documented extensive habitat losses there. For example, “galeolaria towers [that] once lined the deep slopes within the Sounds” are now largely gone, with more damaged mounds observed than intact ones. These large tubeworm formations have been physically “mowed down”, likely by scallop dredges.⁴²

Historical records evidence diverse biogenic habitats widely distributed across much of Golden Bay and Tasman Bay including shellfish, bryozoans, sponges and algal beds. In particular, the bryozoans formed “large mound-like structures” up to half a metre high and were well-known nurseries for juvenile snapper and tarakihi. Most of these habitats have since been lost due to a combination of bottom trawling, dredging and sedimentation.⁴³

“Loss of large bivalve species can have catastrophic impacts on ecosystem function and environmental health... The greatest ecological change in Golden Bay / Mohua and Tasman Bay / Te Tai-o-Aorere since the 1960s is thought to have been the removal of filter-feeding animals such as green-lipped mussels (*Perna canaliculus*), dredge oysters (*Ostrea chilensis*) and scallops (*Pecten novaezelandie*), as well as other invertebrates...”

“This removal has greatly reduced filtration capacity, the ability to remove sediment and phytoplankton (and thereby nutrients) from the waters of the bays. The function shellfish provide increases water clarity to allow light to reach the seabed, and they also transfer nutrients to the seafloor, which enhances the growth of plants (e.g. microalgal diatoms, red algae and seagrass) and support healthy biogeochemical processes. These and other benthic animals change the structure of sediments by providing rugosity, shell and carbonate, thereby decreasing the likelihood of fine sediment being resuspended by tidal currents.”⁴⁴ (Handley et al, 2023)

Trawling of deepwater seamounts has reduced, to low levels, populations of the fragile benthic fauna there. As few as 10 trawls “can reduce average coral cover from 15 to 20% down to zero (no visible cover)”.⁴⁵ Coral reef-like structures can take several hundred or thousands of years to form. Recovery after trawling impacts is uncertain and was not evident after 15 years in one study.⁴⁶

“Benthic communities associated with biogenic habitats formed by deep-sea corals and sponges on seamounts are amongst the most susceptible to fishing impacts because their resilience is apparently low.”⁴⁷ (Clark et al, 2019)

Slow recovery, if at all, of such important benthic habitats (even with active restoration efforts) highlights the critical importance of protecting the areas that remain, particularly from physical disturbance such as bottom

trawling and dredging. Improved management of sedimentation and harvesting of predator species (see spotlight below) is also critical.

Spotlight on urchin barrens

Kelp forests provide the ecological foundations of shallow rocky reef systems, supporting biodiversity, primary production and carbon storage.⁴⁸ They are a “vital provider of biogenic habitat for reef fish” and also play an important role in “supporting coastal food webs”.⁴⁹ In healthy coastal ecosystems, kelp can provide up to half the organic matter that supports fisheries production. Healthy kelp forests can increase fish growth rates as well as the resilience of stocks to fluctuations in phytoplankton production (which as described above is becoming more acute with a changing climate).⁵⁰

In many places kelp is disappearing. This is frequently due to a proliferation of kina (sea urchins) which graze on the kelp forests, eventually removing them, and creating denuded reefs termed ‘urchin barrens’. Along the north-eastern coast of the North Island, urchin barrens now cover around 30 per cent of shallow rocky reefs that are open to fishing (and in some places such as the Noises Islands close to 50 per cent), totalling an area of 30.5 km².⁵¹ They are also extensive in the Marlborough Sounds with kina barrens being the most common and widespread reef type within Queen Charlotte Sound in depths less than 20 metres.⁵²



The expansion of kina numbers, and loss of kelp forest, is largely due to key predator species such as rock lobster and snapper being heavily harvested “meaning they are not large or abundant enough to play an ecologically important role in controlling urchin populations”.⁵³

There has recently been interest in removing excess kina, to enable kelp beds to recover, with promising pilots in the Hauraki Gulf and Marlborough Sounds. These have demonstrated that recovery of kelp forest can occur, in as little as two years, once kina are reduced to very low densities.⁵⁴ However, kina start to naturally increase in number within three years, in the absence of further culling. This highlights the need to re-establish predators (large snapper and crayfish) to keep the kelp ecosystem in balance over the longer-term, and will require much stronger control over their harvest.⁵⁵

A first step has been made in this direction with the recent closure of rock lobster harvest in the inner Hauraki Gulf to help rebuild local populations.⁵⁶ Similar measures are being considered for the east coast of Northland.⁵⁷ These actions were prompted by court action undertaken by the Environmental Law Initiative, with the High Court finding that the Minister for Oceans and Fisheries needed to take further action to address kina barrens, when considering management settings for the rock lobster fishery.⁵⁸

An emerging additional (and more alarming) threat to kelp forests is the recent proliferation of the larger subtropical sea urchin species *Centrostephanus rodgersii* which is expected to increase in abundance as seawater warms. Kina typically graze down to 15 to 20 metres, but *Centros* graze to depths greater than 50 metres. They can therefore take out entire kelp forests, not just their shallower portions. *Centros* are also larger and spikier than kina. Their only known predator is rock lobster (red and packhorse) highlighting the critical importance of having healthy rock lobster populations on our rocky reefs.⁵⁹

2.5 Growing risks from invasive species

Warming seawater is creating greater opportunities for exotic subtropical marine species to establish and outcompete indigenous species. The most recent incident is the arrival (likely by ship) of two species of exotic *Caulerpa* (*Caulerpa brachypus* and *Caulerpa parvifolia*) which were first discovered at Aotea Great Barrier Island in 2021. They have since spread to many locations in the Hauraki Gulf and Bay of Islands (see Figure 2.3) and have the potential to spread from Cape Reinga to East Cape, an area of some 800,000 hectares.

The seaweeds spread rapidly to form large mats on the seafloor smothering indigenous marine species.⁶⁰ An estimate of the impact of the incursion on natural capital asset value found that \$9.4 billion could be lost over 30 years if effective mitigation responses were not deployed.⁶¹ Elimination is now not thought possible given the extent of the incursion. Such invasive species are more likely to take hold where indigenous marine ecosystems are in poor health highlighting the need for a multi-faceted approach to marine management.

Overall, the increasing and compounding pressures on our oceans indicate an urgent need to strengthen the oceans management system in order to step up the effectiveness of ocean management efforts.

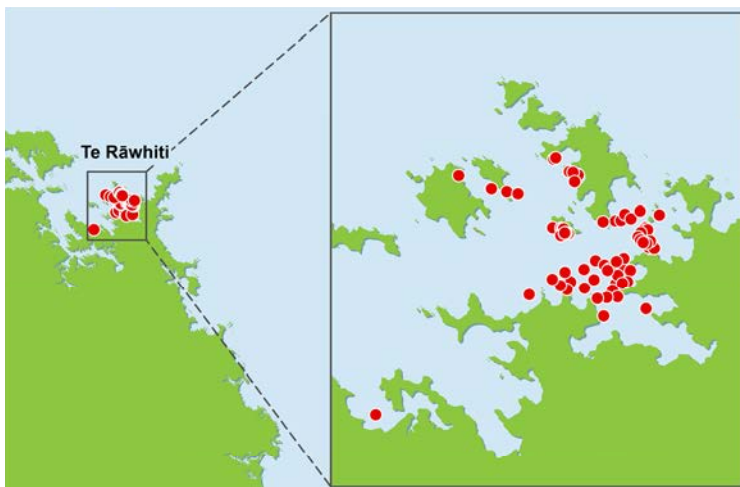


Figure 2.3: Exotic *Caulerpa* detections in the Bay of Islands May 2025 (Source: Ministry for Primary Industries)



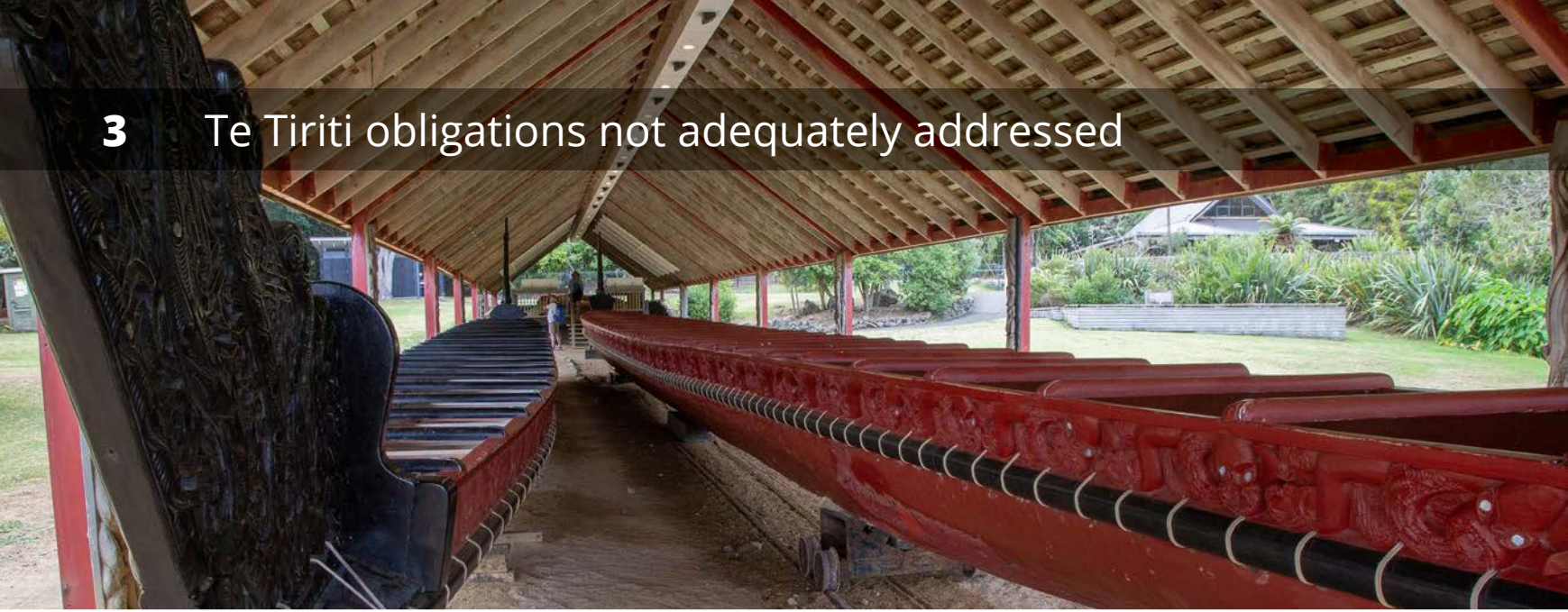
Ecklonia radiata showing lighter patches of zoospores on the blades

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3 Te Tiriti obligations not adequately addressed



Waka taua, Waitangi Treaty Grounds

Ecological degradation of the oceans has both economic and profoundly spiritual implications for Māori. Cultural connections to the moana run deep, being embedded in whakapapa, and manifested through tikanga and the active ethic of kaitiakitanga. The well-being of the natural world is considered to be mutually interdependent with the well-being of people. To sustain mana, kaitiaki are bound to manage, actively protect and restore the mauri (life force) of the marine environment (amongst other things).

The loss of resources, such as mahinga kai, results in loss of the ability to undertake cultural practices and protocols, and to apply and pass down mātauranga Māori to future generations (see spotlight below). This has enduring impacts that run to the core of Māori cultural identity.¹

Spotlight on tikanga and mātauranga Māori

Tikanga is the law and custom of specific iwi and hapū. It is underpinned by the core values of whanaungatanga (kinship), mana (leadership), tapu (social control), utu (reciprocity) and kaitiakitanga (obligation to care for one's own).² Whanaungatanga refers not "only to family ties between living people, but rather to a much broader web of relationships between people (living and dead), land, water, fauna and flora, and the spiritual world of atua (gods) – all bound together through whakapapa."³ The Supreme Court has confirmed that "tikanga has been and will continue to be recognised in the development of common law in Aotearoa/New Zealand".⁴

Mātauranga Māori is the cultural knowledge system which interweaves multigenerational accumulated knowledge, values, beliefs and practices developed at place. It encompasses not only the expertise and knowledge base, but the systems used for its creation and transmission, and the rules and responsibilities associated with its utilisation.⁵ The Waitangi Tribunal has recognised mātauranga Māori as a taonga to which Te Tiriti obligations attach.⁶ This means it needs to be recognised, and its application provided for where relevant, within the oceans management system.



Rāhui, Taranaki coast

Te Tiriti forms the constitutional bedrock of Aotearoa New Zealand and the legal system. Article 1 empowers the Crown to govern and make

laws, including over the marine area, and in particular to protect Māori communities from the harmful effects of settlement. This power was expressed in the Māori version of Te Tiriti as kāwanatanga.⁷

At the same time, Article 2 guarantees Māori “te tino rangatiratanga” over traditional lands and taonga including fisheries. As the Waitangi Tribunal has explained, this includes three key elements: (1) authority or control; (2) the exercise of authority in a way that recognises its spiritual source, and the spiritual source of the taonga concerned, with the object of maintaining the tribal base for future generations; and (3) applied not only to the taonga but to people within the kinship group including their access to resources.⁸

Read together there is an inherent obligation on the Crown to legislate for effective marine management, particularly where marine degradation threatens to “adversely affect the continued use or enjoyment of [traditional] resources whether in spiritual or physical terms”.⁹ However, this needs to be undertaken in a manner that does not undermine Māori authority over their own resources.

“... the various statutory regimes intended to protect and conserve sea fisheries failed to prevent serious depletion of the resource to the detriment not only of Ngāi Tahu but Māori generally. The resulting material and cultural deprivation, as Ngāi Tahu have claimed, undermined their mana whenua and mana moana tribal rights...”¹⁰ (Waitangi Tribunal, 1992)

Over the past few decades there have been significant legal developments in recognising Māori rights and interests in the marine area. They include:¹¹

- Full settlement of customary commercial fishing rights under Te Tiriti through the grant of quota and financial redress (including purchase of a half share in Sealord).¹²
- Recognition of customary non-commercial fishing including through providing for the establishment of taiāpure, mātaimai reserves and temporary fisheries closures.¹³
- Settlement of aquaculture rights through the provision of settlement space and/or financial compensation.¹⁴
- Statutory provision for recognition of customary marine title to the foreshore and seabed.¹⁵

As a result, iwi are now significant players in the country’s marine economy, foremost as owners of commercial fishing quota. A 2019 study found that Māori quota holdings comprised 20 per cent of the total and were valued at \$636 million. This share is continuing to increase with over 60 per cent of Māori organisations actively acquiring more quota.¹⁶ The use of customary fishing tools has become more frequent with 11 taiāpure, 58 mātaimai reserves and 13 temporary closures currently in place nationwide.¹⁷

Many iwi have interests in marine farming, with 13 per cent of Māori entities holding licences and eight per cent undertaking marine farming activities (as at 2019). However, only one iwi (Ngāi Tahu) holds marine mammal watching permits (in Kaikōura and Akaroa). In addition, although not providing for full customary rights, the Marine and Coastal Area (Takutai Moana) Act 2011 (MACA Act) provides a strong role for Māori in marine management (see spotlight).¹⁸

All these Māori interests in the marine space (along with cultural and spiritual associations with the moana) are highly relevant when considering oceans reform.

Spotlight on the Marine and Coastal Area (Takutai Moana) Act 2011

The MACA Act states, as a starting point, that no-one owns or is capable of owning the “common marine and coastal area”.¹⁹ It then introduces a formal framework to enable Māori customary rights in the area to be formally recognised and protected. The redress options provided for under the Act are customary marine title, wāhi tapu protection and protected customary rights.

Customary marine title confers a basket of rights including a Resource Management Act 1991 (RMA) permission right (with permission from the title-holding group required before activities can proceed in the area), a conservation permission right (with permission required for the establishment of marine reserves and marine mammal sanctuaries), a protection right for wāhi tapu, a right to be consulted on changes to the New Zealand Coastal Policy Statement, and ownership of minerals (other than petroleum, gold, silver and uranium).²⁰ Wāhi tapu protection enables restrictions to be placed on activities within the protected area. Recognition of a protected customary right (through a customary rights order) protects customary activities, uses and practices so they do not require consent.

There is also provision for a customary marine title group to prepare a planning document in accordance with its tikanga, which can be lodged with local authorities (which must take it “into account”), Heritage New Zealand Pouhere Taonga (which must “pay particular regard” to it), the Director-General of Conservation (who must take it “into account”), the Minister of Fisheries (who must “have regard” to it) and the Minister of Aquaculture (who must “consider” the document).²¹

The Act also has specific provisions that apply prior to customary marine title or protected customary rights being formally recognised. Affected iwi, hapū and whanau have the right to participate in conservation processes in areas over which they exercise kaitiakitanga. They must be directly notified and the Director-General must “have particular regard” to their views when considering the proposal.²²

In addition, those applying for a resource consent in the coastal marine area need to notify and seek the views of all groups that have applied for recognition of customary marine title in the consent areas. If they fail to do so the application is to be returned as incomplete.²³

All these provisions mean that management agencies need to engage with iwi, hapū and whanau over coastal management at the *local scale*.²⁴

Despite the particularly strong interest of Māori in the marine area, references to Te Tiriti are inconsistent across oceans-relevant statutes. For example, the Marine Reserves Act 1971 and Marine Mammals Protection Act 1978 make no reference to Te Tiriti. But it has been directly applicable to their administration, since 1987, by virtue of section 4 of the Conservation Act 1987 (which requires the Acts listed to be “interpreted and administered” so as to “give effect to the principles” of the Treaty). In contrast, the RMA only requires decision-makers to “take into account” the principles of the Treaty²⁵ which is a much weaker requirement.

The Fisheries Act 1996 is to be interpreted and decision-makers are to act “in a manner consistent with” the Treaty of Waitangi (Fisheries Claims) Settlement Act 1992 which sets out the settlement of Māori claims to commercial fishing rights rather than broader Te Tiriti rights. The Exclusive Economic Zone and Continental Shelf (Environmental Effects) Act 2012 (EEZ Act) does not have a general Te Tiriti clause, but instead has a

descriptive clause, that sets out how the Crown’s Te Tiriti responsibilities are given effect to in the Act.²⁶

Previous EDS reports have highlighted the significant gaps that exist for Māori under existing environmental management frameworks.²⁷ They include a systemic lack of support for agencies to work in partnership with iwi and hapū, legislative and policy settings that fail to provide for customary use (including under the Marine Reserves Act), a lack of incorporation and prioritisation of te ao Māori-based values, and variable or conflicting statutory directions in relation to Te Tiriti principles.²⁸

The design of oceans reform needs to address these issues (to the extent possible) while also recognising and protecting the extensive Māori interests in the marine space. The Sustainable Seas National Science Challenge has developed a useful set of principles, based on tikanga and Te Tiriti considerations, to guide the design of a future oceans marine governance system (see spotlight).

Spotlight on Ngā Pae Moana

The Sustainable Seas National Science Challenge has developed six guiding principles (Ngā Pae Moana) to underpin the design of marine governance models:²⁹

1. *Tātai hono*: Connection and obligation underscores the profound interconnectedness of humankind and the marine environment.
2. *Tauutuutu*: Reciprocity forms the bedrock of all interactions within the oceanic context.
3. *Ngahue*: Acknowledges the pivotal role of the oceans in driving well-being and economic prosperity.
4. *Mana*: Emphasises the enablement of self-determination by devolving decision-making power.
5. *Taurite*: Recognises the value and importance of traditional knowledge systems (mātauranga Māori), practices, and protocols (tikanga Māori).
6. *Toipoto*: Advocates systems that are informed by and deferred to the people at the local level.

Practical measures that have been taken to recognise the special Māori relationship with the marine area, and which could be built on in the design of oceans reform, include:

- Establishing *co-governance entities* to oversee marine planning processes (eg the co-governance Project Steering Group established to oversee the Sea Change Tai Timu Tai Pari marine spatial planning process for the Hauraki Gulf).
- *Incorporation of mātauranga Māori* (where provided) into planning processes (eg the establishment of a Mātauranga Māori Roundtable with specialist technical support, and appointment of a Māori writer, designer and GIS expert to the project team, to support preparation of the Sea Change Tai Timu Tai Pari plan).
- *Supporting iwi-led marine planning initiatives* (eg Department of Conservation (DOC) funding that supported the Te Korowai process established by Ngāti Kuri which led to the Kaikōura Marine Strategy and special legislation for the Kaikōura Marine Area).³⁰

- *Supporting implementation of customary management tools* (eg scientific support provided by University of Otago scientists for the East Otago Taiāpure; Endeavour funding to support the Pou Rāhui project which is investigating rāhui as an environmental management tool in the Hauraki Gulf).
- *Collaborative development of management objectives* (eg proposed for the development of biodiversity objectives for the high protection areas and seafloor protection areas under the Hauraki Gulf / Tikapa Moana Marine Protection Bill 2023).
- *Funding kaitiaki marine rangers* (eg as provided for the Te Hā o Tangaroa Protection Areas in Northland and proposed for the South East marine reserves in Otago).
- *Enabling customary practices in marine protected areas* (eg proposed for the South East marine reserves and for the high protection areas in the Hauraki Gulf).

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4 Oceans management system not fit for purpose



Port Chalmers, Otago Harbour

The oceans management system has grown in an ad hoc manner and over many decades. It is complicated, fragmented and has significant gaps. Multiple statutes interact with each other in complex ways (see Figure 4.1).¹

This complicated statutory framework is matched with an equally diverse range of institutions, with no one agency having clear responsibility for ocean stewardship, or ensuring marine ecosystem health.² The system has simply not proved equal to the oceans challenges the country is facing.

“In contrast to states such as Australia, Canada and the UK, New Zealand lacks overarching legislation of application to its entire marine environment, has eschewed the development of a national oceans policy or plan and has no national coordinating agency with full responsibility for all – or most – things maritime.”³ (Scott, 2016)

The case for oceans reform has long been established and it has become more compelling over time. Back in 1999, the PCE (Dr Morgan Williams) noted the “widespread dissatisfaction with the provisions and efficacy of New Zealand’s management regimes for the marine environment and fisheries, and the lack of a cohesive approach to complex ecosystems”.⁴

The Commissioner’s report ‘Setting Course for a Sustainable Future: The Management of New Zealand’s Marine Environment’ helped prompt

government to initiate an oceans policy process, with the appointment (in 2001) of a Ministerial Advisory Committee tasked with identifying a shared national vision, goals and objectives for oceans management. A cross-departmental officials group was then established to progress the policy development process.⁵ This identified five key issues that the policy would need to address: (1) more effective integration of activities, policies, agencies and legislation; (2) improved management and performance; (3) reconciliation of competing uses and providing for new ones; (4) more effective coordination and generation of marine information; and (5) meeting obligations under Te Tiriti.⁶

As it turned out, the oceans policy process did not reach fruition, due to controversy over Māori rights to the foreshore and seabed, which erupted in 2003. The policy process has never re-emerged, other than very partially, when the legislative gap in the EEZ was addressed with the passage of the EEZ Act in 2012.⁷

The problems identified more than two decades ago remain. They were revisited in EDS’s 2022 ‘The Breaking Wave’ report (see spotlight). We invite the reader to refer to that report for deeper analysis of problems with the current system which we do not revisit in depth here. However, we have kept them front of mind when developing the proposals for oceans reform set out in the following sections.

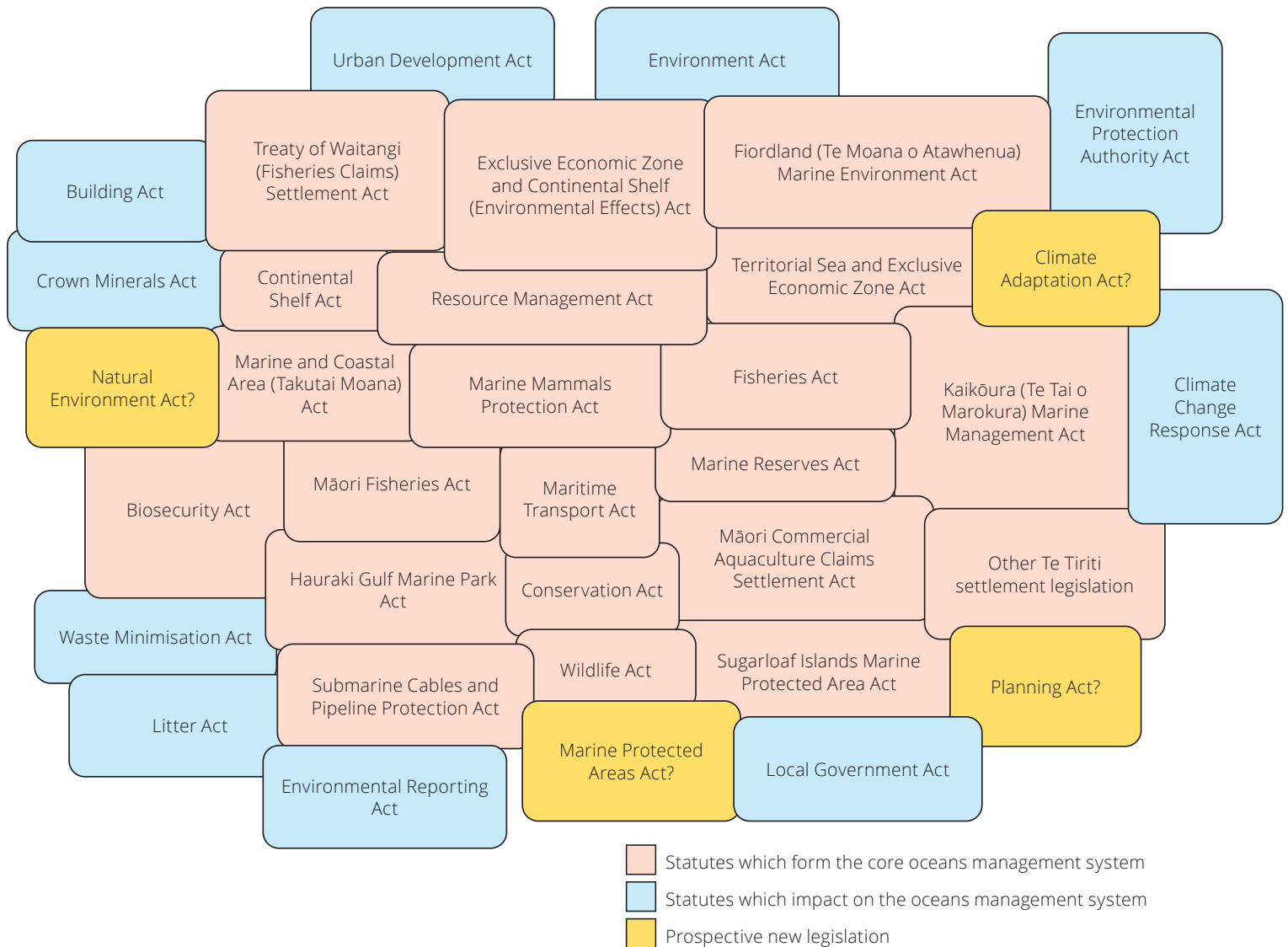


Figure 4.1: Statutes which form the core of, or impact on, the oceans management system

Spotlight on problems with current oceans management system

Problems with the current oceans management system include:⁸

a. Outdated norms and values: which reflect the concerns of an earlier time. This is particularly noticeable when it comes to Te Tiriti, climate change, and the imperative to protect and restore the natural environment, not just mitigate impacts on it.

b. Lack of strategy and agility: with a lack of clear goals for what the system is trying to achieve, and the agility to respond in a timely way to changes in environmental conditions, including those driven by climate change.

c. Unclear leadership and stewardship: with legislative and institutional fragmentation creating a vacuum of leadership, where agencies struggle to work together, or simply assume that responsibility lies elsewhere.

- d. *Weak approach to environmental limits*: with limits in the marine area not being mandatory in many cases, and limits set in one part of the system being undermined by exceptions in other parts.
- e. *Procedural unfairness*: with different rules applying to different activities, uncertainty around compensation for erosion of rights, and marginalisation of tangata whenua in a system that does not reflect Te Tiriti principles.
- f. *Fragmentation with gaps and overlaps*: leading to a lack of coordination of frameworks, agencies and iwi Māori, all which need to work together to achieve positive outcomes.
- g. *Insufficient information and funding*: with a lack of sufficient investment in oceans research and management.

The Government is currently undergoing a process to replace the RMA with two new statutes: a Planning Act for land use planning and a Natural Environment Act for natural resource management. This will have significant implications for the oceans management system as most activities in the territorial sea and catchments (with the main exception of fishing) are managed under the auspices of the RMA. Although, at the time of writing details were sketchy, some proposed key features of the new system have been identified which include:⁹

- No general Te Tiriti clause
- Reworked single National Policy Direction under each Act (and national standards) – thereby potentially replacing the New Zealand Coastal Policy Statement
- Environmental limits set by regional councils under the Natural Environment Act for fresh and coastal water and marine ecosystems amongst other things (but no minimum requirement for the level at which they are to be set)
- Regional spatial planning under the Planning Act
- One combined plan per region (with separate chapters written by each council)
- Environmental effects to be regulated based on the economic concept of externalities

- Greater reliance on permitted activities and fewer activity classes
- Protection against regulatory takings (yet to be defined)
- More nuanced allocation tools and charging for use
- New national compliance and enforcement regulator.

While some of these proposals may make it more difficult to achieve effective integrated management of the marine area (such as splitting land use planning and environmental regulation), other aspects could be positive, such as a stronger framework for spatial planning, environmental limits, allocation and charging. The impact of other proposals will depend on the eventual design and wording of the new law and supporting policy documents, such as whether the ‘avoid’ policies of the New Zealand Coastal Policy Statement will be strengthened or weakened and how regulatory takings might be defined in the marine area.

One issue of concern is that streamlining the current system through stronger plans and fewer resource consents relies on having good information on the nature and location of environmental values at stake. In the marine area the information base is much more patchy than on land. For example, the Office of the Prime Minister’s Chief Science Advisor highlighted the lack of knowledge about fished species, species and habitat, non-target species and the environmental impacts of fishing.¹⁰

“Tens of millions of dollars is dedicated to ocean research efforts every year, but this barely scratches the surface.”¹¹ (Office of the Prime Minister’s Chief Science Advisor, 2021)

If care is not taken, the absence of information can be taken to represent the absence of values that need protecting. This is why it will be essential to invest in high quality mapping and data capture in the coastal marine area to support the implementation of the new system.

While the development of oceans policy has been on hold, problems with the oceans management system have remained largely unaddressed. At the same time, the condition of the oceans has worsened in many areas, and climate change is fundamentally changing the dynamics of the ocean and life within it. The case for oceans reform has never been more compelling and more urgent.

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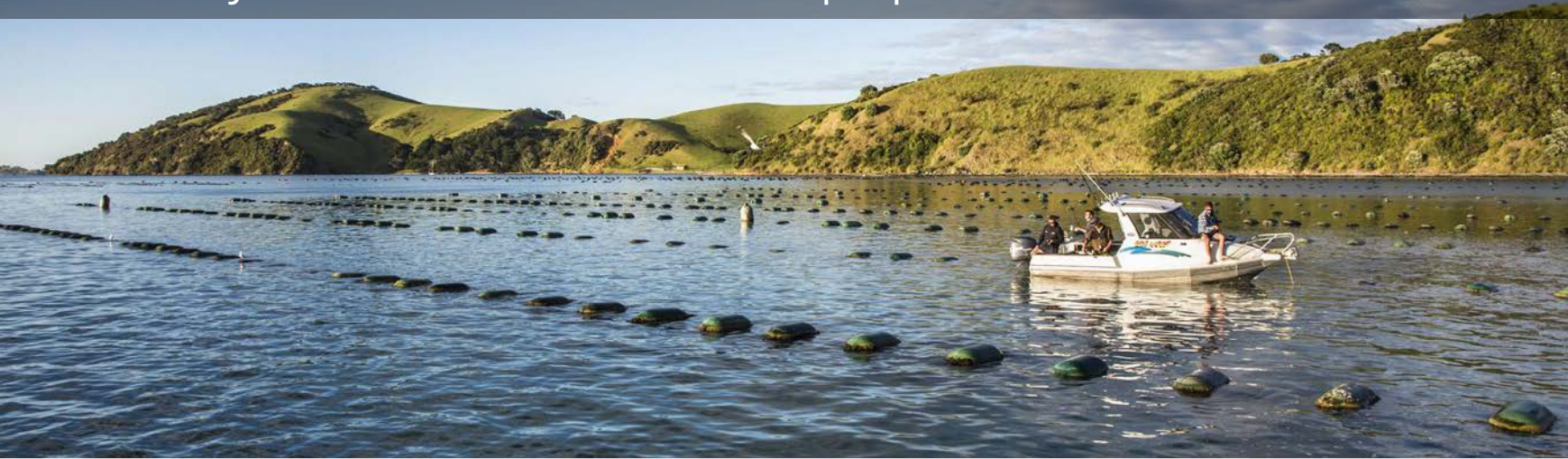
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5 System architecture of reform proposals



Mussel farm, Coromandel

The overall architecture of the reform proposals, set out in the following sections, is summarised in Figure 5.1. They include an Oceans Act which will, at the outset, set out a common purpose for the oceans management system and principles to be applied by decision-makers.

The Oceans Act will also establish an Oceans Commission to develop a draft National Oceans Strategy and track the government's progress in implementing it. There will be provision for the development of a National MSP Framework, to support MSP initiatives on the ground, and for MSP plans to be given legal effect in marine decision-making.

Sitting alongside the National Oceans Act will be a Marine Protected Areas Act to provide new processes and a greater range of tools for marine spatial protection.

Once this basic architecture is in place, the establishment of an Oceans Agency and/or a Ministry for the Oceans could be progressed. This would bring all the oceans functions together under one roof. Both the Agency and Ministry would be established under the Oceans Act (similar to how the Ministry for the Environment was established under the Environment Act 1986 and the Department of Conservation under the Conservation Act).

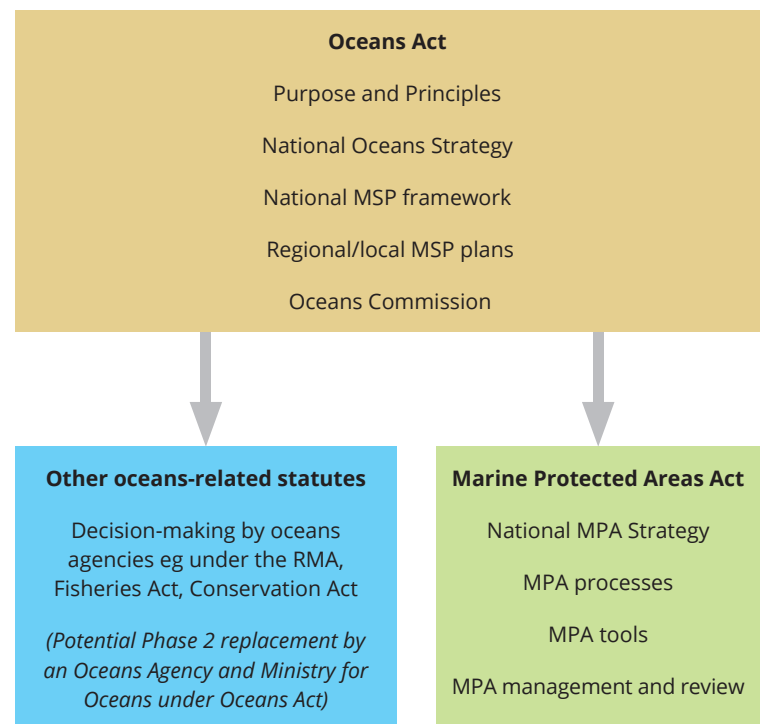


Figure 5.1: Overview of ocean reform proposals



Urupukapuka Island, Bay of Islands

6 National Oceans Strategy



Akaroa Harbour

There have been many calls for the development of a national document to better integrate and focus oceans management efforts (see spotlight) indicating a strong consensus on this matter. Although the document has been referred to variously as an oceans policy, strategy, plan or strategic action plan the sentiments are similar. There needs to be a coherent articulation of what the oceans management system is seeking to achieve in Aotearoa New Zealand and how to achieve it.

“While the challenges facing New Zealand’s ocean estate are similar to other maritime countries, no coherent national strategy exists to support optimal economic, social, cultural and environmental outcomes.”¹ (Mills, 2023)

Spotlight on calls for a national oceans document

There have been multiple calls for the development of a national oceans document including:

- In 1999, the PCE recommended the establishment of a Coastal and Oceans Task Force to develop a *Strategy* comprising goals, principles, actions and policies for the future sustainable management of New Zealand’s marine environment.²
- In 2003, the Oceans Policy Secretariat developed proposals that included the development of a *National Oceans Plan* to set national priorities, baseline ecological standards, and processes and tools for reconciling competing uses.³
- In 2012, Michael McGinnis highlighted the need for “clear management principles, policy tools and policy instruments to strengthen integrative, ecosystem-based marine governance in New Zealand”.⁴



Patea

- In 2021, the Office of the Prime Minister's Chief Science Advisor recommended the development of "a bold *Oceans Strategic Action Plan* for 2040 to protect and manage Aotearoa New Zealand's territorial sea and EEZ". This was to have "a clear integrative framework to prioritise, coordinate, implement and measure outcomes to achieve 100% sustainably managed oceans".⁵
- In 2021, Professor Karen Scott suggested that Aotearoa New Zealand still needed to develop a *National Oceans Policy* twenty years on from the first abortive attempt.⁶
- In 2023, The Lever Room advanced the development of an Oceans Roadmap for New Zealand with a diverse range of senior leaders. At the heart of the roadmap is the "Co-development of an *Oceans Strategy/Sustainable Oceans Plan* which confirms goals, commitments and optimises solutions across protection, production, prosperity and wellbeing".⁷
- In 2024, the National Party committed to creating "an integrated *oceans management policy*" across all relevant government agencies.⁸
- In 2024, the Green Party committed to task a newly established and independent Oceans Commission with developing "an *Oceans Strategy* for ecosystem-based marine management that upholds te Tiriti o Waitangi".

Such a document has become common-place internationally (see spotlight below). EDS's previous analysis of the development of national oceans policies in the USA, Australia, Canada and Aotearoa New Zealand identified five key elements. First, there was *a common purpose* for the management of oceans, which could be expressed as a vision and high-level management objectives and principles. Secondly, there were *integrative mechanisms* to jointly harness the actions of different oceans managers to achieve the common purpose. Thirdly, *strategic actions* were set out to implement the policy. Fourthly, oceans policies typically included *a framework for area-based planning* (MSP) as a mechanism through which the high level principles could be applied to specific marine ecosystems. Finally, they included *performance management systems* to monitor the health of the oceans and regularly review effectiveness of management actions.⁹

Spotlight on international examples of marine policies and strategies

National marine documents have become commonplace internationally. For example,

- In 2011, the United Kingdom government adopted a Marine Policy Statement under the Marine and Coastal Access Act 2009. It includes an overall vision for the marine area, a high-level approach to marine planning, and general principles for decision-making. It also has policy objectives for key activities within the marine environment.¹⁰
- Norway has had an Oceans Strategy since 2017 and updated the document in 2019. This is designed "to unlock the potential for further sustainable job creation and value creation in ocean industries" while also safeguarding marine biodiversity and keeping the seas and oceans clean.¹¹
- In 2020, Samoa completed an Oceans Strategy for 2020-2030 which includes a vision for Samoa's ocean, identifies threats and sets out a number of integrated management solutions.¹²
- In 2020, Fiji developed a National Ocean Policy for 2020-2030 which sets out a vision, principles, goals and strategies.¹³
- In 2022, the Victorian State Government approved a Marine and Coastal Strategy, prepared under Marine and Coastal Act 2018, which is a five year action plan to implement the Marine and Coastal Policy also prepared under the Act. A new Strategy is to be prepared every five years.¹⁴
- In 2024, British Columbia completed its Coastal Marine Strategy which sets out a "coast-wide, holistic vision for how to steward our use and enjoyment of the coast in balance with nature". It sets out nine goals and 24 actions and was developed in close collaboration with First Nations governments.¹⁵
- The Australian Federal government is currently preparing a Sustainable Oceans Plan. It "sets a vision to 2040, highlights the outcomes we want to achieve, and identifies opportunities for action to help us tackle key challenges while supporting people's livelihoods and our growing ocean economy".¹⁶

Sustainable Oceans Plans are being promoted by the High Level Panel for a Sustainable Ocean Economy (a grouping of 19 national leaders seeking to build momentum towards a sustainable ocean economy).¹⁷ Their aim is to “advance long-term economic and social development, while simultaneously promoting the health of marine ecosystems”.¹⁸ Aotearoa New Zealand is not currently a member of the Panel.

An oceans strategy or policy could form the “normative glue” that holds disparate parts of the oceans management system together.¹⁹ It could place “ocean health at the centre of decision-making”²⁰ by setting out a hierarchy of obligations which put the well-being of the oceans first, the ability of people to access the ocean for sustenance second, and achieving social, cultural and economic well-being third.²¹

“Establishing a clear, shared vision is essential to guide priorities, direct change, and inspire both individuals and collectives to place the ocean at the heart of decision-making. This vision serves as a unifying force, aligning efforts and ensuring that all stakeholders are working towards a common future where the health of the ocean is paramount.”²² (Sustainable Seas National Science Challenge, 2024)

An oceans strategy could also serve to drive action to address oceans management challenges. It could do this through setting out the objectives the oceans management system is seeking to achieve and a set of milestones along the pathway towards reaching the objectives. Progress against the milestones can then be tracked. This would be similar to the approach provided in the Climate Change Response Act 2002 (see spotlight).

Spotlight on Climate Change Response Act 2002

The Climate Change Response Act sets out a national emissions target (net zero emissions by 2050) and a rigorous process to ensure the target is met. This includes requiring the Minister to set emissions budgets for every four-year period leading up to 2050, and emissions reduction plans stating how each budget will be met. Progress towards meeting each emissions budget is then monitored and reported on by the Climate Change Commission.

As suggested by Professor Scott, such a document could promote the implementation of ecosystem-based management (EBM), facilitate integrated management, provide an ecologically coherent framework for area-based protection measures, provide a framework for co-governance of ocean resources with Māori, raise the profile of oceans as an economic and environmental priority, and help to implement Aotearoa New Zealand’s international commitments and demonstrate international leadership.²³

Spotlight on ecosystem-based management

There are many different conceptions of EBM. Macpherson et al (2021) proposed the concept of ‘relational’ EBM which is a process rather than an outcome. It is conceived as a “dynamic, multi-faceted process of interactions between humans and nature” which needs to be “adaptive, flexible, networked, connective and iterative to respond to anthropogenic stressors” including climate change.²⁴

During The Lever Room’s 2023 Ocean Roadmap process, there was growing consensus on the utility of an overarching oceans plan or strategy to:²⁵

1. Articulate a shared vision with supporting collective goals and actions
2. Promote an ecosystem-based approach to stewardship
3. Establish a spatial framework to optimise use of marine space and resources
4. Attract investment support for the development of a high-value sustainable marine economy that provides wellbeing benefits
5. Safeguard the long-term health and resilience of the ocean and coastal communities.

An oceans strategy could set national environmental limits and targets for the marine area. These should include specifying unacceptable practices as well as the environmental quality (including marine habitats and biodiversity) to be protected.²⁶ It should also provide a framework for futures scanning – to ensure that future iterations of the document address climate, technology and societal changes.²⁷

An oceans strategy could provide a more coherent approach to the management of oceans information and prioritisation of research. This should build on the extensive work undertaken by the PCE on improving the environmental information system.²⁸

“Current arrangements do not reliably provide the information base on which well-informed decisions can be made. And without robust environmental information we won’t be able to judge if costly actions and mitigations undertaken are making a difference.”²⁹ (PCE, 2025)

An oceans strategy would need to be enshrined in legislation so that it could not be sidelined or abandoned when political priorities change.³⁰ Its interface with the various management regimes (eg resource management, fisheries, conservation) would need careful design, to help ensure effective integration of decisions across the system, while enabling tailored approaches at the regional and local levels.

Spotlight on potential to strengthen existing mechanisms for national oceans strategy

There is currently only one statutory national policy or strategy directly focused on the oceans. This is the New Zealand Coastal Policy Statement, which only applies within the RMA system, and to the territorial sea. It is implemented through regional policy statements and regional plans (which must give effect to it) and consequently through resource consent decision-making under the plans. It is therefore primarily reactive (ie only comes into operation when a consent is sought). It has also been largely ignored by regional councils when it comes to marine management (see spotlight on performance of regional councils in Chapter 12). It is also not clear what its fate will be when brought into integrated national direction under the proposed new resource management system.

The New Zealand Coastal Statement could potentially be reviewed, strengthened and given broader application. But to apply across the entire oceans management system, it would really need to be housed under broader legislation. For this reason we have recommended a new National Oceans Strategy which would be a broader, more modern and more action-orientated document.

Careful thought will also need to be given to how such a document would be developed. For a start, iwi Māori would need to be at the

heart of the development process, given Te Tiriti obligations and strong cultural and economic interests in the marine area. It would also need to reflect the broader aspirations of the New Zealand public. For this reason, we propose that the Oceans Commission (which would be a partnership body between the Crown and iwi Māori as described in Chapter 9) be given the task of developing a draft National Oceans Strategy, through a broad consultative process, for approval by the government under a new Oceans Act.

The benefit of terming the document a ‘strategy’ rather than a ‘policy’ or ‘plan’ is that it implies something that is action-oriented and therefore more likely to drive actual change. However, the terminology is less important than what the document contains and what statutory force it is given.



New Zealand fur seals, Doubtful Sound

Recommendations for National Oceans Strategy

We recommend that a new Oceans Act require the promulgation of a National Oceans Strategy. This will apply to the country's entire marine realm (coastal marine area, EEZ and extended continental shelf). The Oceans Commission (established under the Oceans Act) would be tasked with preparing a draft Strategy for formal adoption by government under the Oceans Act. The Strategy would include:

- An vision for oceans management
- A set of principles to guide oceans decision-making
- A set of national environmental limits and targets for the oceans
- A description of how international oceans obligations and commitments will be met
- A description of how the oceans management system information needs will be met, including investment in research and management of spatial databases
- A description of how the principles of Te Tiriti are to be given effect to throughout the oceans management system (including when co-governance and devolution should be considered)
- A National MSP Framework
- Methods to be adopted to promote integrated oceans management (such as cross-party working groups)
- The results of future scanning to identify future oceans threats and opportunities
- A set of objectives to be achieved within the life of the Strategy (10 years) and interim targets (3 and 6 years) to address these
- A monitoring and reporting system to track progress in meeting the objectives and interim targets.

To ensure effectiveness, the Strategy would need to be given statutory recognition, such as by requiring all oceans decision-makers to 'pay particular regard to', 'not be inconsistent with' or 'give effect to', it. Some parts of the Strategy could be given stronger legal force than others. Careful consideration will be needed as to how it will interact with existing statutory provisions and policies impacting the oceans.

The Strategy should be a living document, with a requirement to review more frequently than 10 years if evidence comes to light that the objectives are not being met. The Oceans Commission should be tasked with tracking Government progress in meeting the objectives and interim targets.



Waikawau Bay, Coromandel Peninsula

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7 National Marine Spatial Planning Framework



Bethells Beach, Waitākare Ranges

For clarity of communication we use the term marine spatial planning (or MSP) in this report, but suggest that Aotearoa New Zealand could adopt a suitable indigenous term (such as Mahere Moana), for the roll out of a new marine planning framework (see spotlight).

Spotlight on terminology

In this report we have used the term ‘marine spatial planning’ which is well recognised internationally as well as in Aotearoa New Zealand. However, we are not certain this term best describes the kind of ecosystem- and place-based marine planning we are referring to here. In some people’s minds ‘spatial planning’ connotes a process that divvies up and allocates marine space for private use. A better term could be ‘marine ecosystem planning’ which emphasises the need to plan within an ecosystem framework. Alternatively, a suitable Māori term could be ‘mahere moana’ which simply means ‘to plan for the ocean’.

In ‘Restoring the Sea’ we identified MSP as a key mechanism to apply a more integrated and strategic approach to marine management at the regional and local level. It is also a mechanism to operationalise the National Oceans Strategy at place. MSP is a broad concept rather than a definitive approach. It is forward-looking and strategic, responsive to change, integrative, participative, and underpinned by concern for the

health of ecosystems at place.¹ It emerged internationally during the 1990s and more than 125 countries and territories now have MSP initiatives in place.² MSP has become the norm when it comes to marine management.

MSP is *place-based*, focused on mobilising regional and/or local efforts to better manage a particular ‘seascape’ for the benefit of the marine environment and the communities reliant on it.

As we described in ‘Restoring the Sea’, MSP can provide many benefits for oceans management in Aotearoa New Zealand. It can better integrate oceans management, provide more effective support for healthy marine ecosystems and biodiversity (including marine restoration), develop measures to address the impacts of climate change, help build a sustainable blue economy, and enable greater empowerment of Māori and local communities to manage their local marine areas.³

“The promise of an integrative, ecosystem-based approach to MSP is that human beings can cooperate to plan for the large-scale spatial complexity and variability of ecosystems, and resource managers can resolve the inevitable conflicts between social, economic and political interests that are often associated with marine spaces.”⁴ (McGinnis, 2012)

Spotlight on what others have said about MSP within the Aotearoa New Zealand oceans system

Michael McGuinness (2012) recommended that place-based, ecosystem-based and collaborative planning be supported including by new marine policy.⁵

The McGuinness Institute (2015) recommended using MSP where needed, including within the EEZ, emphasising that “individual marine spatial plans must be integrated into a comprehensive national system of governance”.⁶

Professor Karen Scott (2021) proposed that oceans policy include “the development of processes supporting bioregional and/or spatial planning in order to support ecosystem-based and integrated oceans management throughout New Zealand’s maritime zone”.⁷

The Office of the Prime Minister’s Chief Science Advisor (2021) suggested that “ideally, marine spatial planning would sit with and align to a higher strategic policy or framework for the oceans, drawing on both mātauranga Māori and western science”.⁸

Macpherson et al (2023) emphasised the importance of “integrated and holistic planning for managing environment affects in the ocean” and “place-based collaboration in marine governance”, cautioning against an overly strong focus on ‘spatial’ management as opposed to supporting the ongoing relationships between ecosystem components (including people).⁹

Mills (2023) emphasised the importance of a spatial framework that optimises use of marine space and resources.¹⁰

The Sustainable Seas National Science Challenge (2024) proposed that marine spatial planning be provided for in a standalone Oceans Act to implement national direction.¹¹

The Ministry for the Environment’s 2023-2024 Annual Report indicated the intention to “establish an integrated marine spatial planning framework that enables the protection and use of marine space and resources”.¹²

approaches can mobilise the knowledge and energy of mana whenua and local community members who often have deep local knowledge and commitment to place. They can also serve to fill gaps in agency responses to marine issues, due to their operation at a less granular level, and integrate agency efforts at place.¹³

However, it is clear from ‘Restoring the Sea’ that such initiatives need stronger support, and it is for this reason we recommend the development of a statutory National MSP Framework. Inspiration can be taken from the framework recently adopted by the Victorian State Government (see spotlight).

Spotlight on Victorian MSP framework

The Victorian State Government’s Marine and Coastal Act 2018 provides for the development of a Marine and Coastal Policy which must include a “marine spatial planning framework that establishes a process for achieving integrated and coordinated planning and management of the marine environment”.¹⁴



The MSP Framework adopted as part of the Policy (in 2020) sets out how MSP is to be initiated, approved and undertaken.¹⁵ First, it sets out a set of specific policies that apply to marine planning, management and decision-making. These address healthy, resilient marine ecosystems; ecologically sustainable and equitable use; integration with land-based planning and across jurisdictions; inclusion, collaboration and transparency; proactive, future-orientated and adaptive planning; and the need for the plan to be evidence-based.

Secondly, the MSP Framework sets out a statewide approach to determine marine planning areas and identify priorities for undertaking MSP. Thirdly, it sets out a process for the responsible

Experience around the country (as reviewed in ‘Restoring the Sea’) has shown that place-based marine management initiatives can be highly effective. This is particularly the case if they are founded on a collaborative approach and are sufficiently resourced and supported. Such

Minister to authorise the commencement of a MSP process. Fourthly, it sets out a series of steps to undertake MSP. Detailed instructions on how to undertake a MSP process are then set out in accompanying MSP Guidelines. Notably, who prepares the Marine Plan is left open, to allow flexibility in comprising the MSP planning team.

The key output of the MSP process is a Marine Plan described as “A comprehensive strategic document that provides the structure and direction for marine spatial management decisions in the area of the marine environment to which the plan applies”.¹⁶ It is to include the scope of the plan; its vision, goals and objectives for the area; key issues; management approaches to address key issues; a zoning plan if required; and a monitoring, evaluation, reporting and improvement strategy for the plan.

The responsible Minister approves a Marine Plan, after ensuring it complies with the legal requirements, and seeking approval from other ministers with responsibilities for uses in the area. Once the plan is approved all planning, management and decision-making must be consistent with it.¹⁷

As noted earlier, the MSP Framework has been fleshed out with MSP Guidelines produced in 2022.¹⁸ Notably, these make it clear that Traditional Owners must be fully funded to support capacity building to self-determine their roles in MSP, protocols for Indigenous Data Sovereignty, and how cultural landscape and values and Traditional Owner rights and objectives are to be reflected in MSP and the resulting Marine Plans.¹⁹

In ‘Restoring the Sea’ we reviewed a range of design principles for a National MSP Framework which we summarise briefly below.

7.1 Scale and scope of MSP

The scale of MSP will need to be flexible, depending on the area of interest, but will need to be wide enough to encompass the key marine issues and management challenges in the area of focus. For coastal areas, this will almost certainly include catchment drivers of marine ecosystem decline, as well as a range of marine activities (including the harvest of marine life and seabed-impacting activities).

Where a marine area has experienced significant degradation, when compared to its historical state, active and passive marine restoration actions will need to be considered. The scope of MSP should also include

blue economy opportunities, particularly regenerative activities that support and restore marine ecosystem health.

Climate change also needs to be front and centre of any MSP planning process. As climate change impacts on marine systems become more acute, it will be critical that MSP considers measures to increase marine ecosystem resilience. Blue carbon considerations will also be important, particularly where marine restoration efforts can contribute to greater carbon sequestration in the marine area, where activities such as bottom trawling and seabed mining might release carbon²⁰ or where carbon removal technologies may have unintended consequences.

7.2 Initiation of MSP

Local and regional MSP processes could be initiated by a council (or more than one council jointly), iwi, hapū, community group, stakeholders (such as environment, recreational fishing, commercial fishing, marine farming, marine tourism etc) or a coalition of some or all of these. Given the place-based nature of MSP, it is less likely that central government would be the appropriate body to initiate the planning process, unless it applied to a remote area such as in the EEZ. However, central government agencies will need to provide support for local and regional MSP processes, such as in the form of expertise, information and funding.

It will be particularly important that non-government parties have the ability to initiate a MSP process where management agencies do not take action. The frequent failure of agencies to step in to protect the health of the marine environment was highlighted in our ‘Restoring the Sea’ case studies and needs to be addressed. Community initiation could be mediated by a ‘gateway’ process, similar to that in Victoria (see earlier spotlight), where the Minister or in New Zealand’s case the proposed Oceans Commission would authorise the commencement of a MSP process. It is also important that there is a mandatory requirement to initiate a MSP process (either by council or central government) where there is significant degradation of the marine area, conflicts over use, or need to provide for new uses.

Where the initiative is not council or central government agency led, external support will be needed for the planning process, including providing a suitable independent facilitator, access to science (along with mātauranga Māori where this is made available) and administrative support. A steering group will need to be established to design and oversee the planning process. Iwi and/or hapū representatives will need to be integral members of that group. The group should also, where possible, oversee implementation to provide continuity.

7.3 Plan-making process

Considerable benefits can be achieved from adopting a collaborative process for MSP. Such processes can build partnerships between iwi, hapū, environmental NGOs, recreational and commercial fishing sectors (amongst others) and local communities. These can not only support the MSP processes themselves, but also other related initiatives. It will be important to recognise that collaboration takes time, as does active Māori engagement, but the benefits can be enduring.

“At its heart, MSP is a collaborative planning and decision-making process, and support at the national level for regional planning should be made available.”²¹ (McGinnis, 2012)

As set out in more detail in ‘Restoring the Sea’, the planning process itself is likely to include three broad components: (1) Establish a historical ecological baseline; (2) Document the current state of the marine system; and (3) Identify a future vision and pathway to get achieve that vision.

7.4 MSP Implementation

Effective implementation will likely require a governance entity (which could be the planning body), recognised in statute, which is tasked with co-ordinating implementation, providing oversight and accountability, tracking and reporting on progress, and undertaking future plan revisions.

There are many tools in the marine management toolbox that can be used to support the implementation of MSP, under various pieces of legislation, although not all are fit for purpose. A mix of customary and other tools can be particularly effective. MSP can also help design new tools where there are gaps in the toolbox. Whatever tools are used to implement MSP, it is important that the plan itself has regulatory status, so that it cannot be simply ignored and collaborative efforts wasted. This can be achieved through provisions in the proposed new Oceans Act.

It is also important that good support is given to MSP including adequate resourcing, access to knowledge and science, and a facilitative regulatory environment. Similar to the approach taken in Victoria, the MSP Framework could be included in the National Oceans Strategy and be fleshed out with National MSP Guidance or ‘Mahere Moana Guidance’.

7.5 Elements of MSP Framework

The MSP Framework should include a purpose for MSP, process and information requirements, and minimum content for plans (including setting clear objectives and targets). The Framework should also include a tag to regularly updated National MSP Guidelines (in a similar way to how Policy 26 of the New Zealand Coastal Policy Statement requires “taking into account national guidance and the best available information on the likely effects of climate change on the region or district”).

MSP Guidelines should be commissioned by government, to bring together existing knowledge and experience both from within the country and overseas, and set out best practice. This should include the extensive work of the Sustainable Seas National Science Challenge. The Guidelines could be similar in concept to the Ministry for the Environment (MFE) guidance on coastal hazards and climate change and the forthcoming guidance on Dynamic Adaptive Pathways Planning for climate adaptation planning.²² As experience with MSP builds up, the Guidelines can be updated.

The MSP framework should leave councils, iwi, hapū and local communities with considerable autonomy to determine the appropriate composition of a governance entity, and the design of the planning process, depending on the needs of their communities and pressures on their marine areas. This would also enable the process to be better tailored to meet the needs of different iwi, hapū and whānau. Those initiatives that met minimum requirements could access national funding.

This could be similar to the provisions provided for by local board plans, under the Local Government Act 2002, where section 48N sets out the purposes of local board plans and some matters that must be included. The process for developing the plans is left open, with the local board able to “follow whatever processes it considers appropriate” to give effect to the purposes of the plan and meet the consultative requirements under the Local Government Act.²³

There could be provision for the Minister to endorse the plans under the Oceans Act, if they met certain requirements, at which point decision-makers under other legislation will need to not be “inconsistent with them” or “give effect to them”. In this way the MSP plans would serve a key integrative role in marine management at the regional/local level (see Figure 7.1).

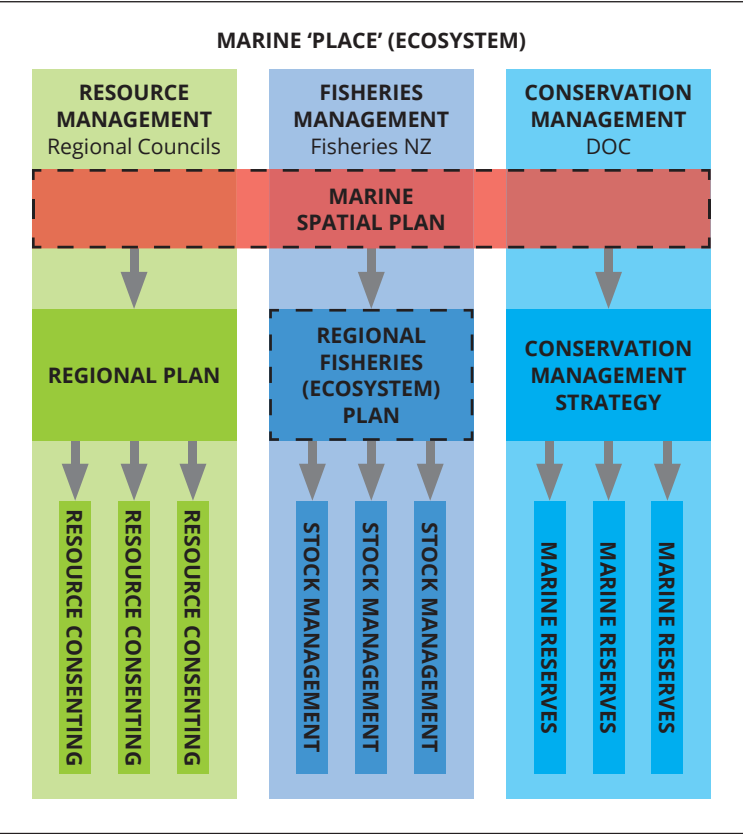


Figure 7.1: Integrative role of MSP in regional marine management

As mentioned earlier, the current proposals for replacement of the RMA include providing for regional spatial planning under a new Planning Act. It is as yet unclear whether the spatial plans will include the coastal marine area, and in fact whether the coastal marine area will be included within the scope of the Planning Act at all. That statute is slated to have a focus on “land-use”, enabling development and creating “well-functioning urban and rural areas”.²⁴

As explained in the cabinet paper, regional spatial plans “will be enabling of development within constraints (such as natural hazards and SNAs [significant natural areas])”. They will broadly identify “future urban development areas, major existing and future infrastructure, and where separation of incompatible activities may be required”.²⁵ This approach does not appear to have seriously factored in the marine environment which requires a different approach to that on land. To the extent that the coastal

marine environment is included in these plans, MSP could help inform their content including matters such as the identification of high value areas which should be protected from development, areas which require active restoration, and areas suitable for growing the blue economy.

Spotlight on potential to strengthen existing mechanisms for MSP

As several reviewers pointed out to us, a form of spatial planning currently occurs under the RMA, and this raises the question as to whether it would be preferable to strengthen and broaden that framework, rather than create something new. We have thought about this carefully but do not consider this would result in the kind of collaborative, proactive and cross-sectoral planning processes that the marine area needs.

For a start, the RMA is a reactive piece of legislation, with a focus on the mitigation of effects (with inevitable ongoing environmental decline), rather than restoring degraded environments which is what is needed for many of our coastal areas. In addition (and as discussed above), current resource management reforms are looking to move spatial planning to a land-based Planning Act which means that the marine area, if it is included at all, is likely to be an afterthought.

We also note that none of the integrated marine planning initiatives we reviewed in ‘Restoring the Sea’, had been undertaken under the RMA and several have required special legislation to be implemented. In two out of the three cases when the more progressive provisions of the RMA have been used (to control fishing effects on marine biodiversity) the council refused to act in the first instance, and the matter ended up in the Environment Court. Prospective amendments to the RMA seek to further restrict the circumstances in which councils can use these provisions,²⁶ which is likely to act as a strong disincentive any future council initiative in this area.

The other possibility is to include MSP in any new MPA legislation. However, we received a strong push back to that proposition from many interviewees who thought this would mean that MSP would become focused mainly, or even solely, on marine protection and identifying MPAs. For all these reasons we have concluded that a National MSP Framework should be developed under broader legislation than the RMA or prospective MPA legislation.

Recommendations for National MSP Framework

- The Oceans Act should require the preparation of a National MSP Framework
- A draft Framework should be prepared by the Oceans Commission for approval by the Minister of Oceans
- The Framework should address the scale and scope of MSP, initiation of MSP planning, the plan-making process, plan approval and implementation. It should provide considerable scope for local variation, including in the constitution of the plan-making body, while meeting minimum national requirements
- The Framework should make clear that iwi or hapū are either to lead or be partners in the plan-making process, which should incorporate tīkanga and mātauranga Māori (where made available)
- The National MSP Framework should be supported by MSP Guidelines prepared by the relevant Ministry (MFE in the first instance but eventually the Oceans Agency or Ministry for the Oceans if established)
- Funding and technical support should be made available to regional/local MSP planning processes
- MSP plans should be approved by the Minister for Oceans (or Oceans Commission) and have statutory effect on decision-making within the area of the plan
- MSP plans should be regularly reviewed and updated

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8 Marine Protected Areas Act



Long Bay–Okura Marine Reserve

In ‘Protecting the Sea’ we canvassed a range of MPA considerations, before reviewing past efforts to reform the now very dated Marine Reserves Act, and drawing lessons from them. We then summarised key areas of contention and convergence across iwi Māori and stakeholders when considering MPA creation. Finally, we set out a series of key design principles to inform the content of a new Marine Protected Areas Act.

We summarise our key conclusions below but refer readers to ‘Protecting the Sea’ for deeper analysis of, and support for, the conclusions presented here.

8.1 MPAs and what they can deliver

In broad terms, MPAs seek to provide a “safe place” for marine life.¹ The New Zealand government’s 2005 ‘Marine Protected Areas: Policy and Implementation Plan’ (MPA Policy) defines an MPA as “An area of the marine environment especially dedicated to, or achieving through adequate protection, the maintenance and/or recovery of biological diversity at the habitat and ecosystem level in a healthy functioning state.”² The definition is further fleshed out in the ‘MPA Protection Standard’ which is set out in the MPA Policy (see spotlight).

The MPA Policy recognises two types of MPAs: Type 1 (marine reserves established under the Marine Reserves Act); and Type 2 (protection provided under other legislation that meets the MPA Protection Standard).³ The provision for Type 2 MPAs contemplates spatial areas

being classified as MPAs, even if their prime purpose is not biodiversity protection, but is the consequence of a different management regime. However, the Policy makes it clear that MPAs are not seeking to achieve comprehensive marine management or other marine management objectives (such as sustainable fisheries) although they may contribute to such broader outcomes.⁴



Blue maomao, Rakitu Island

MPAs are a response to multiple and growing pressures on ocean ecosystems and resultant negative impacts on habitats, species and ecosystem functioning. They seek to reduce pressures by constraining human activity within defined marine areas. MPAs can allow ecosystems to return to a more natural state with associated increases in species diversity, abundance and size. Well-designed and managed MPAs can protect marine life within their boundaries, as well as contribute to broader oceanic health, particularly when there are spill-over effects.

Spotlight on MPA Protection Standard

To comprise an MPA under the 2005 MPA Policy the management tool deployed must “enable” the maintenance or recovery of the site’s biological diversity (at the habitat and ecosystem level) to a healthy functioning state. This includes:

- (a) physical features and biogenic structures that support biodiversity;
- (b) ecological systems, natural species composition (including all life-history stages), and trophic linkages; and
- (c) potential for the biodiversity to adapt and recover in response to perturbation.⁵

“A new meta-analysis of previous studies shows that biomass of whole fish assemblages in marine reserves is, on average, 670% greater than in adjacent unprotected areas, and 343% greater than in partially-protected MPAs”.⁶ (Sala and Giakoumi, 2018)

However, MPA benefits are often disputed, particularly by those impacted by their creation including fishers and indigenous peoples. In particular, MPAs do not address land-based impacts on the marine area (including sediment), so need to be supported by broader management interventions.

International studies indicate that strong stakeholder engagement, good design with clear objectives, and strong enforcement are key to MPAs achieving positive outcomes.

And as noted below, they need to be supported by complementary measures to ensure overall oceans health, including effective fisheries management under the Fisheries Act, good management of other marine uses under the RMA, and robust land-based management.

Spotlight on benefits of MPAs

Many positive benefits are claimed for well-designed MPAs including:⁷

- a) Increased abundance and diversity of species
- b) Restored biogenic habitats
- c) Re-established foundation and keystone species
- d) Greater variation in age and size structure (including more older, larger and highly productive fish)
- e) Protection of habitats of significance for fisheries management
- f) More productive fish stocks in the surrounding area⁸
- g) Provision of a safety net against fisheries collapse⁹
- h) Increased marine ecosystem productivity
- i) Greater resilience to stressors (such as sea water warming,¹⁰ sedimentation, pollution and invasive species)¹¹
- j) Increased carbon sequestration
- k) Increased scientific knowledge¹²
- l) Provision of control sites for identifying impacts of human use (including fishing)¹³
- m) Enhanced cultural, educational and recreational opportunities
- n) Economic benefits through tourism and enhanced fish stocks¹⁴
- o) Increased ecosystem services more generally.¹⁵

8.2 International MPA commitments

The Kunming-Montreal Global Biodiversity Framework, adopted in December 2022, contains Target 3 which specifically refers to MPAs and highlights the international intention to significantly increase marine protection. The Target triples the coverage requirement in previous agreements from 10 to 30 percent,¹⁶ requires these to be ecologically representative, provides for the use of “other effective area-based conservation measures” and requires “the rights of indigenous peoples and local communities” to be recognised and respected.

Kunming-Montreal Global Biodiversity Framework Target 3

“Ensure and enable that by 2030 at least 30 per cent ... of marine and coastal areas, especially areas of particular importance for biodiversity and ecosystem functions and services, are effectively conserved and managed through ecologically representative, well-connected and equitably governed systems of protected areas and other effective area-based conservation measures and integrated into wider ... seascapes and the ocean... recognizing and respecting the rights of indigenous peoples and local communities, including over their traditional territories.”

The New Zealand Government adopted this global protection target of ‘30 by 30’ in 2022.¹⁷ However, it has yet to determine what the country’s



Te Whanganui-o-Hei (Cathedral Cove) Marine Reserve

contribution to the global target will be. The last marine reserve in Aotearoa New Zealand was created in 2014 and (while the 30 per cent target has not been adopted at a domestic level) the country is a long way from meeting the global protection target in-country (see spotlight).

Spotlight on progress with marine protection

A total of 9.8 per cent of the territorial sea is protected in 44 Type 1 MPAs (marine reserves) with an increase to 12.3 per cent coverage when Type 2 MPAs (other tools which meet the Marine Protection Standard) are included.¹⁸ However, the network is not ecologically representative due to the bulk of MPA protection being around offshore islands. Mainland bioregions have only 0.3 to 4.7 per cent of their area in MPAs. Fiordland has by far the highest proportion of protection (4.72%), with the lowest being along the east coast of the North Island (0.25%), followed by the south coast of the South Island (0.47%).¹⁹ There are no Type 1 MPAs in the EEZ which forms the bulk of the country’s oceans.

As well as small coverage, there is a notable lack of representation and replication in the MPA network. Of 416 habitats identified across 14 bioregions, more than 65 per cent are not protected in any marine reserve, and 70 per cent have less than one per cent of their extent in MPAs. The level of replication (the same habitat protected in more than one MPA) is also low with several bioregions having no replication at all.²⁰

Slow progress in MPA creation is at least partly to do with a lack of a suitable statutory framework. Efforts still largely rely on the Marine Reserves Act, which is not fit-for-purpose, or require bespoke legislation to be passed. It has long been acknowledged that new legislation is needed.

8.3 Past MPA reform efforts

Past efforts at MPA reform include the Marine Reserves Bill 2002, the 2016 Marine Protected Areas Act Consultation Document, and a MPA Discussion Document prepared in 2021 but never publicly released. In addition the 2005 MPA Policy and 2008 Implementation Plan were developed to assist progress in achieving marine protection under the Marine Reserves Act. Apart from the MPA policy, which has had patchy implementation, none reached fruition.

“The most egregious failure of oceans governance over the last twenty years has been the consistent inability to update legislation providing for the designation of MPAs and other forms of area-based protection, and to effectively implement the 2005 MPA Policy.”²¹ (Scott, 2021)

Considerable effort has been put into MPA law reform, by many people over many years, but with few tangible results to show for it. This is not due to a lack of knowledge about effective MPA policy design, or poor public support for marine protection, or lack of dedicated Ministers. The highly politicised nature of the subject-matter, and short political windows of opportunity that open and then quickly close again, has made achieving reform extremely difficult.

In particular, Māori rights and interests in the marine area have yet to be fully resolved, and successive governments have managed to inflame rather than resolve this underlying tension. In both the foreshore and seabed and Kermadec Ocean Sanctuary controversies, government acted without engaging with Māori first, and unilaterally abrogated important rights and interests. This, in turn, impeded progress for many years with oceans-related policy.

There is also a fundamental conflict, which has yet to be fully resolved, between a protectionist approach that seeks to exclude activities from marine areas and a relational te ao Māori worldview where economic interests and a responsibility to care for the environment are not necessarily seen as inconsistent. This highlights the importance of Māori being an integral part of any future MPA policy development.

Concerns about the impacts of MPAs on the fishing community has also slowed progress and future MPA reform will need to engage with, and seek to at least partially resolve, such concerns.

The short Parliamentary term of just three years has also been unhelpful. Some Ministers ran out of time in their portfolio. In other instances, the consultation process ran over successive terms of government where it became difficult to maintain political momentum. By the time progress is finally made, it is often too late, as politics change.

Unhelpfully, the promise of MPA legislative reform has put a damper on progressing new marine protection initiatives under existing frameworks. This all highlights that we lack good process and enduring leadership across the oceans space. However, it is also clear that there has long been political support across parties for new MPA legislation (see spotlight).

Spotlight on political support for MPA reform

The Alliance Party, National Party and Labour Party have all attempted to progress MPA reform in the past indicating that the proposition has had broad political support over the years.

In a 2016 article, Professor Karen Scott recommended that the country “adopt legislation permitting the designation of MPAs within New Zealand’s entire maritime zone on a principled basis.”²²

More recently, the National Party promised in its 2023 election policy that “we will update the Marine Reserves Act to provide a broader range of marine protected areas and change the way they are created, working with the fishing industry, environmentalists, and iwi”.²³

The Labour Party, in its 2023 election policy, promised to “reform our marine protection legislation” as well as “continue to expand the country’s network of marine protection areas ... working towards the 30% global target for marine protection.”²⁴

In its 2023 election policy, the Green Party promised that a new Healthy Oceans Act would include a framework for MPAs in a way that upholds Te Tiriti. There would be a binding target of protecting 30 per cent of the ocean. MPAs would include migratory routes of marine species, seabird feeding and foraging areas, and representative areas of different marine types.²⁵



Cape Rodney-Okakari Point Marine Reserve

8.4 Key areas of contention and convergence

In 'Protecting the Sea' we identified some key areas of contention and convergence which were evident from sectoral submissions on MPA processes and our interviews with stakeholders.

From the outset, there is a divergence of views as to what the starting point for MPAs should be and what tools should be utilised to achieve marine protection. Scientists and conservationists have argued for a fully representative network of MPAs, targeted at protecting indigenous biodiversity, and covering a significant proportion of the marine area. This is reflected in the international agreement referred to above ('representative network approach'). In addition, from a scientific perspective, no-take reserves are to be preferred due to evidence they are more effective at achieving biodiversity outcomes.²⁶

In contrast, fishers argue that MPAs should not be based on arbitrary protection goals, but should instead focus on responding to identified risks to biodiversity values ('risk-based approach'). The starting point is that fishing should be able to take place unless significant risks are established and these should be managed using the most appropriate, and least cost, tool.²⁷ Fisheries management tools are to be preferred, if biodiversity risks are caused by fishing, as they are more targeted and flexible. Marine reserves should only be used as a last resort.

A protective approach where marine areas are conserved in their 'natural state'²⁸ is premised on a construction of nature which largely excludes humans.²⁹ Such an approach does not align well with the cultural values of iwi, hapū and whānau who seek to continue customary practices and maintain relationships and connections with place. Permanent no-take areas can sever cultural connections and obstruct the exercise and transmission of intergenerational customary practices.³⁰

Where some form of marine protection is needed, customary management tools are preferred, as they offer greater flexibility, promote a more balanced and holistic approach to oceans management, and are supportive of rangatiratanga and the application of tikanga ('tikanga-based approach').

There is also a divergence of views as to the utility and effectiveness of MPAs in oceans management. As outlined above, published scientific literature has identified a range of positive outcomes from MPAs, with fully no-take areas having the greatest benefits for biodiversity. There is also evidence that fishers gain economic benefits from MPAs along with their biodiversity gains.

In contrast, fishers argue that MPAs fail to address the multiple pressures and threats on the marine environment, including land-based impacts, and cause more problems than they solve.³¹ This is through displacing fishing effort to other areas, which increases exploitation there, and exacerbates rather than reduces spatial conflicts.³² This, in turn, can lead to sustainability issues in the remaining open areas³³ and subsequent calls for more closures and restrictions, in a downward spiral for the fishery.

Fishers are not generally compensated for losses or additional costs arising from marine protection. It has been the Crown's longstanding position that compensation for the loss of commercial fishing rights, arising from a proposed marine protection measure, is undesirable due to the significant fiscal implications. It could make it exceedingly difficult to establish further MPAs, or take other measures to protect the marine environment, given the limited size of the public purse. However, if there is public aspiration for a much more meaningful MPA network, and if New Zealand is to support international aspirations of 30 per cent of the marine area in protection, then the compensation issue may well arise

There are limitations to the no-compensation approach in respect of Māori settlement quota. The High Court has recently confirmed that fisheries quota transferred to Māori under the 1992 Māori fisheries settlement cannot be unilaterally expropriated without compensation. The Court confirmed that the Crown has an "enduring obligation to ensure the loss of quota shares ... does not affect the integrity of the settlement". This raises the question of when the creation of MPAs does and does not result in the expropriation of fisheries settlement quota, that is, where the line is to be drawn.

Despite the sticking points described above, there is a lot that different sectors agree on when it comes to MPAs. This was most evident in our interviews, where views appeared to have softened over time, and were converging. Areas of agreement include:

- Developing clear goals for marine protection
- Building flexibility into the MPA system, with the marine reserve 'lock it up forever' model seen as far too rigid
- Using collaborative processes to develop MPA proposals that work towards consensus
- Starting with a broader frame which considers a range of desired economic, social, cultural and environmental outcomes, from the outset, rather than just marine protection

- Using a wide range of tools for protection including customary management tools (mātaihai reserves, taiāpure and s186A and B temporary closures), fisheries management tools (fisheries plans and sustainability measures) and RMA tools (spatial delineation and rules in regional coastal plans) alongside traditional marine protection measures (marine reserves)
- Driving action to address land-based impacts which were seen as having a particularly negative impact on the health of the marine environment
- Integrating marine protection with broader oceans management to manage seascapes
- Depoliticising the MPA process by providing a stronger statutory decision-making framework and considering the use of independent panels.

“Beyond MPAs a number of contributors also highlighted the opportunity for more agile, flexible and temporary approaches to protection. The two-year rāhui Ngāti Pāoa has placed around Waiheke’s coast on gathering scallops, mussels, crayfish and pāua to give the species a chance to recover has been referenced as a success.”³⁴ (Mills, 2023)

All these factors have informed our design of MPA reform proposals.

8.5 Design of new Act

Former proposals for MPA reform have all had similar characteristics, but with some differences depending on the political dynamics at the time of proposal (see Figure 8.1). These provide a solid platform on which to progress reform. Except in 2016, the proposals all included the EEZ, thereby filling a notable gap in the country’s marine protection toolkit which currently lacks statutory provision for marine reserves or other highly protected areas outside the territorial sea. It is important that new legislation applies to the EEZ.

The 2021 proposals included the development of a National MPA Strategy which was to “provide further guidance on specific provisions in the Act”. In particular, it “would establish a strategic, nationally coordinated approach to the establishment and management of MPAs by describing national objectives, priorities and standards”. This was intended to “support the prioritisation of resources and development of an MPA network”.³⁵

We consider this to be a good idea, in order to provide a stronger, coordinated approach to MPA creation and management. It could update and replace the now dated 2005 MPA Policy and give it statutory ‘teeth’.

Notably the 2016 and 2021 proposals broadened out the types of MPAs to provide options in addition to marine reserves. These include species-specific sanctuaries (similar to marine mammal sanctuaries under the Marine Mammals Protection Act), seabed reserves (to protect benthic areas from destructive activities such as bottom trawling and dredging), and marine conservation areas (a more flexible category that could be tailored depending on what is sought to be protected).

However, we note Professor Karen Scott’s comment on the 2016 proposed MPA designations that “their roots remain firmly embedded in the current, now out of date practice of strictly protecting small iconic sites or protecting larger areas from a single or narrow range of threats”. She notes that other states “regarded as leaders in marine management” have adopted the practice of designating larger multi-use MPAs such as the Great Barrier Reef Marine Park.³⁶ For this reason, we consider that a wider range of MPA types should be provided for in new legislation which includes smaller and more tightly restricted marine reserves along with much larger multi-use marine parks.

All the past MPA reform proposals have given particular consideration to how Māori interests should be reflected in the system. Proposed provisions include having a broad Te Tiriti clause; co-designing the National MPA Strategy; ensuring meaningful iwi Māori involvement in all stages of MPA design, creation and management; fully recognising non-commercial customary practices; and exploring options for co-governance of MPAs (including through management bodies).

All these proposals make sense. It will be important that the new MPA legislation and MPA Strategy provide a firm but enabling framework so that specific arrangements can be tailored to meet the needs of individual iwi, hapū and whānau. We note the call from Mcpherson et al for “biocultural and flexible marine protection regimes that centre Māori authority and allow for balanced and reciprocal protection and use of marine areas”.³⁷

None of the previous proposals adequately address the impacts of spatial protections on other marine users. This is a tricky and highly contested area, but will need some resolution if significant areas are to be protected. For this reason, we recommend that a test is defined in the legislation for when impacts of MPAs on fishing and/or other activities are ‘unreasonable’.

and redress may be merited. It is also important that any impacts on stock sustainability through displaced fishing effort are considered front on and addressed if necessary.

Past experience has demonstrated that collaborative processes have enabled the most progress to be made on marine protection³⁸ so it is important that this approach is supported and encouraged in the future. We note that both the 2016 and 2021 proposals make provision for a collaborative process to develop up MPA proposals for recommendation to Ministers.

The 2016 proposals also provided for the use of an independent board of inquiry to make recommendations. We support this approach where a collaborative process has not been used. Given the highly political nature of MPAs it is important that any proposals are given robust independent scrutiny, based on the evidence, and in line with the purposes of the Act and provisions of the MPA Strategy.

Proposals for who should make the final decision on MPA creation include the Minister of Conservation solely, the Ministers of Conservation and Oceans and Fisheries, and a wider group of Ministers. The proposal for the Minister of Conservation to have sole decision-making authority proved to be one of the major sticking points with the 2000 Bill. We therefore consider the most pragmatic option is that contained in the 2021 discussion document which is a joint decision by the Ministers of Conservation and Oceans and Fisheries. Alternatively, the Oceans Commission could be given the power to determine MPA proposals.

The energy, knowledge and resources of iwi, hapū and the local community should be harnessed (where possible) to support MPA management, acknowledging the possible administrative challenge if such groups proliferate. For this reason, we support the proposals to provide for the appointment of management bodies and advisory groups. In addition, the system needs to be agile and adaptive, so the new legislation should provide for regular review and reporting as is proposed through various mechanisms in the earlier proposals.



Tāwharanui Marine Reserve

Attribute	Marine Reserves Bill 2000	MPA Act proposals 2016	MPA Act proposals 2021
EEZ	Included	Excluded	Included
Type of MPA	Marine reserves	Marine reserves, species-specific sanctuaries, seabed reserves and recreational fishing parks	Marine reserves, marine conservation areas
MPA Policy	No	No	National MPA Strategy, with development and implementation supported by a Science and Mātauranga Māori Advisory Board
Provision for Māori	Treaty clause; consultation with iwi/hapū when proposal prepared; reserve must have no “undue adverse effect” on relationship of iwi/hapū with area or ability to undertake customary food gathering; advisory committees to include iwi/ Māori representation	Treaty clause; meaningful iwi/Māori involvement in all stages; Maintain integrity of MACA Act rights and fully recognise non-commercial customary fishing arrangements; advisory committees to include iwi/ Māori representation	Under Conservation Act Treaty clause; explicit provision for rights and interests in other legislation (and for impacts on them to be considered); potential co-design of National MPA Strategy; partnership in establishing, managing and reviewing MPAs; customary fisheries management practices to be recognised; options for co-governance arrangements to be explored
Impacts on other users	Must have no “undue adverse effect” on a range of activities including commercial and recreational fishing, recreational use, economic use and development, adjoining land interests, navigation, education and research	Mandatory independent assessment of economic impact of a proposed MPA	“undue adverse effects” threshold for existing interests
Compensation	No	Only payable to quota owners subject to “materially significant” impacts from recreational fishing parks	No
Initiation	Any person may initiate	Joint Ministerial decision on initiating proposal	Either government-initiated regional scale processes or expression of interest by an individual, iwi/Māori or group and confirmed by Ministerial decision
Processing	Director-General decides if proposal can proceed, notifies for public submission, and reports to Minister	Collaborative process or board of inquiry makes recommendations to relevant Ministers	Government-led or collaborative process followed by public consultation

Attribute	Marine Reserves Bill 2000	MPA Act proposals 2016	MPA Act proposals 2021
Decision	Minister of Conservation	Jointly by relevant Ministers (must include Conservation, Primary Industries, Environment and Māori Development Ministers)	Jointly by Ministers of Conservation and Oceans and Fisheries
RMA interface	Silent	MPAs to be recognised in regional coastal plans and taken into account in decision-making	Spatial protections under the RMA can be recognised as MPAs
Review	Yes if required under Order in Council or reserve no longer meets the purpose of the Act	Periodic review of MPAs undertaken by collaborative process or board of inquiry	National MPA Strategy reviewed every 10 years; periodic review of MPAs
Tourism	Concessions system	Concessions system	Concessions system
Management	Management bodies and advisory bodies can be appointed; management plans to be prepared	Advisory boards	Advisory management groups; MPA management plans
Monitoring and reporting	Silent	Status of MPAs regularly reported on	Report on state of MPA network every 10-15 years

Figure 8.1: Key provisions of previous MPA reform proposals



East Otago Taiāpure

In 'Protecting the Sea' we distilled more detailed design principles for new MPA legislation which we reproduce below.

1. Provide a clear overall purpose for marine protection

- a. Prime focus on protection of indigenous marine biodiversity
- b. Protecting a range of marine communities, habitats and ecosystems
- c. Supporting climate mitigation, climate adaptation and ecosystem services
- d. Strengthening human connection with the marine environment
- e. Contributing to the health and productivity of the broader marine area (including fisheries)

2. Ensure MPAs are well designed

- a. Each MPA has a clear objective
- b. Most appropriate protection tool is used to achieve protection goal at site
- c. Located in the right place to meet the purpose
- d. Appropriately sized to provide the protection sought
- e. Rules enable the conservation objective to be met
- f. Buffer areas provided for
- g. Able to be enforced

3. Provide a range of spatial protection tools with specific purposes, such as:

- a. *Marine reserves* – high level of protection for marine ecosystems and biodiversity, ie no take with provision for customary practices, recreation and tourism
- b. *Marine sanctuaries* – protection of identified species, including marine mammals and seabirds

- c. *Marine restoration areas* – specific marine habitats protected and/or actively restored such as benthic habitats, kelp forests and mussel beds
- d. *Marine parks* – large flexible multi-use areas which provide for customary use and low intensity fishing, as well as education, recreation and tourism

These would be in addition to other tools that contribute to spatial marine protection, including customary management measures and tools under the Fisheries Act, RMA and other legislation.

4. Use collaborative processes to design networks:

- a. Provide a clear policy framework for collaboration (in a revamped MPA Policy)
- b. Use bottom-up collaborative processes where possible
- c. Provide appropriate central government funding
- d. Centre iwi, hapū and whānau at the heart of the process
- e. Ensure appropriate mandate of participants
- f. Include a wide remit to consider all stressors on marine environment
- g. Give legal weight to the outcomes of collaborative processes

5. Address Te Tiriti rights and interests:

- a. Acknowledge and respect tikanga and rangatiratanga, and core Māori concepts associated with the marine space and taonga, including its mana and mauri
- b. Support indigenous-led management of marine areas which reflects tikanga and rangatiratanga
- c. Ensure Māori values, rights and aspirations inform the identification of prospective MPA sites and areas to be avoided
- d. Foster incorporation and active use of mātauranga Māori (where provided), applying it alongside mainstream science
- e. Enable formal recognition and inclusion of mana whenua-led protected areas within MPA networks (where sought)

6. Address impacts on fisheries:

- a. Design MPA networks to minimise fishing impacts without compromising biodiversity objectives
- b. Where displaced fishing effort significantly affects stock sustainability, provide adjustment measures
- c. Define a test for when impacts of MPAs on fishing are 'unreasonable' and redress may be merited
- d. Consider structural adjustment support for significantly affected quota owners and commercial fishers
- e. Design measures to avoid displaced recreational fishing effort (such as reduced bag limits and size limits)
- f. Design appropriate non-commercial customary fishing redress with affected iwi and hapū

7. Build in flexibility:

- a. Provide for regular reviews of MPAs including the ability to adjust boundaries, location and rules
- b. Provide for future MPA planning and enable gaps in the MPA network to be filled

8. Ensure effective and active management:

- a. Provide clear management objectives for each MPA
- b. Support co-management with iwi/hapū and community
- c. Provide for active restoration activities
- d. Ensure regular monitoring and public reporting
- e. Ensure effective enforcement (cross agency)
- f. Provide iwi, hapū and community rangers with enforcement powers
- g. Provide a reasonable degree of preference for mana whenua in the issue of concessions or permits within MPAs

9. Ensure adequate resourcing:

- a. Provide a clear budget line for MPA establishment and operation
- b. Ensure commercial users of MPAs contribute to resourcing (such as through concession fees)
- c. Consider other funding measures (eg levies on marine users)

Spotlight on potential to strengthen existing mechanisms for MPAs

Given the multiple efforts at MPA reform that have failed to reach fruition, some interviewees suggested it might be better to keep working within the current legislative framework (ie the Marine Reserves Act) and focus on updating the MPA Policy and Implementation Guidelines. This is an option, but we consider the Marine Reserves Act to be so flawed, that its deficiencies cannot be adequately addressed by policy development. No-one we spoke to for this project thought the Act was fit for purpose. It is particularly abrasive to iwi and hapū, many of which strongly oppose its use in their rohe moana. And it is notable that no marine reserve has been created in the last decade. For all these reasons we have concluded that the better option is to pursue new legislation.



Danish seining in the Hauraki Gulf

Recommendations on new Marine Protected Areas Act

Promulgate a new Marine Protected Areas Act to replace the Marine Reserves Act, incorporating the following design characteristics:

- Spatial application to include the territorial sea and EEZ
- Require the preparation of a National MPA Strategy
- Establish a Science and Mātauranga Māori Advisory Board (which could sit within the Oceans Commission) to support the development and implementation of the Strategy
- Provide for a range of MPA types including marine reserves, marine sanctuaries, marine restoration areas, and multi-use marine parks
- Ensure meaningful iwi Māori involvement in all stages of MPA design, creation and management, adopt co-design where possible, respect Te Tiriti rights and provide for non-commercial customary practices
- Include a legislative test for when impacts of MPAs on other activities is 'unreasonable' and fair redress may be merited
- Ensure any impacts of displaced fishing effort are considered and addressed if necessary
- Provide for a collaborative process or an independent board of inquiry to make recommendations on the creation of MPAs
- The Ministers of Conservation and Oceans and Fisheries, or the Oceans Commission, should make the final decision on MPA creation
- Enable advisory and management bodies to be appointed for MPA management
- Review the National MPA Strategy every 10 years and provide for the periodic review of MPAs
- Provide for regular MPA monitoring, and a regular report on the state of the MPA network every 5 years, reviewing effectiveness and identifying gaps.



Mimiwhangata Rāhui Tapu

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9 Oceans Commission



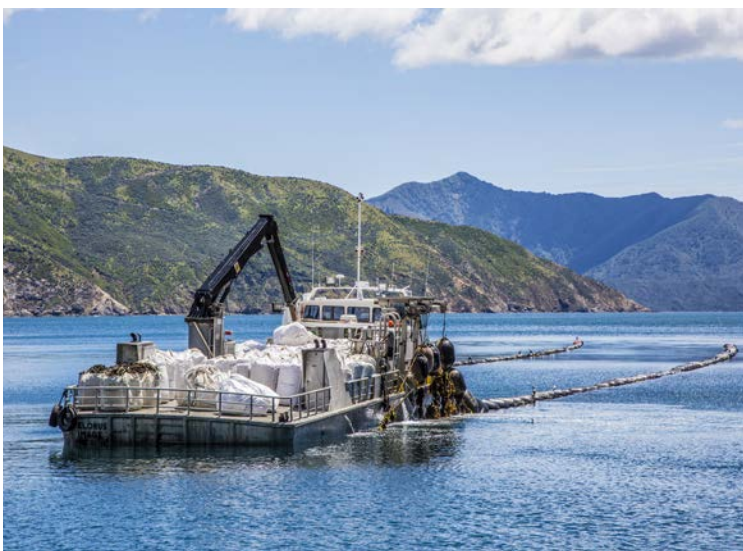
Raglan Harbour

The oceans management system is characterised by a weak institutional framework (as highlighted in section 4). In particular, there is fragmentation across the system (see Figure 9.1) with poor integration, unclear leadership and stewardship, and insufficient recognition of Māori rights and interests. In many cases, marine responsibilities are a small part of the functions of largely terrestrially-focused agencies – MFE, DOC, regional councils and the PCE (see spotlight), and so typically do not receive the attention they require.

Spotlight on the PCE and oceans

The PCE is an independent entity tasked with reviewing agencies and processes, and investigating the effectiveness of environmental planning and management, with the objective of “maintaining and improving the quality of the environment”. The Commissioner can also inquire into “any matter that has had or may have a substantial and damaging effect on the environment”.¹

Of the 52 investigation reports featured on the Commissioner’s website, dating back to 2009, only one is tagged as being directly marine (which investigated carbon stocks in marine sediment). There is also a 2020 report on managing estuaries which could also be categorised as marine-related (but is tagged governance and policy).² However, it is very evident that the oceans management system has not been a focus of the Commissioner in recent years, despite the ambit of his functions being very broad with “environment” defined to include ecosystems (including people and communities) and natural and physical resources.³ This highlights the need for strongly oceans-focused entities if the marine environment is not to be neglected.



Mussel harvesting, Te Hoiere–Pelorus Sound

Significantly, no one institution is responsible for the overall health and sustainable use of the oceans. In addition, there is no champion for the oceans or an entity designed to keep the oceans system honest.

Family of statutes	Key statutes	Responsible institutions
Resource management	Resource Management Act 1991	Ministry for the Environment, Regional and unitary councils
	Fast-track Approvals Act 2025	Ministry for the Environment, Environmental Protection Authority
	Exclusive Economic Zone and Continental Shelf (Environmental Effects) Act 2012	Ministry for the Environment, Environmental Protection Authority
Fisheries	Fisheries Act 1996	Ministry for Primary Industries (Fisheries NZ), Department of Conservation (protected species)
	Treaty of Waitangi (Fisheries Claims) Settlement Act 1992	Ministry for Primary Industries
	Māori Commercial Aquaculture Claims Settlement Act 2004	Ministry for Primary Industries
	Māori Fisheries Act 2004	Ministry for Primary Industries
Shipping	Maritime Transport Act 1994	Ministry of Transport, Maritime NZ
Biosecurity	Biosecurity Act 1993	Ministry for Primary Industries (Biosecurity NZ)
Conservation	Conservation Act 1987	Department of Conservation
	Marine Reserves Act 1971	Department of Conservation
	Wildlife Act 1953	Department of Conservation
	Marine Mammals Protection Act 1978	Department of Conservation
	Hauraki Gulf Marine Park Act 2000	Department of Conservation
	Fiordland (Te Moana o Atawhenua) Marine Management Act 2005	Ministry for the Environment
	Sugar Loaf Islands Marine Protected Area Act 1991	Department of Conservation
	Kaikōura (Te Tai o Marokura) Marine Management Act 2014	Department of Conservation
	Climate Change Response Act 2002	Ministry for the Environment
Mining	Crown Minerals Act 1991	Ministry of Business, Innovation and Employment
	Continental Shelf Act 1964	Ministry of Foreign Affairs and Trade
Other	Heritage New Zealand Pouhere Taonga Act 2014	Heritage New Zealand Pouhere Taonga
	Marine and Coastal Area (Takutai Moana) Act 2011	Office of Treaty Settlements and Takutai Moana
	Submarine Cables and Pipelines Protection Act 1996	Ministry of Transport, Maritime NZ
	Environmental Reporting Act 2015	Ministry for the Environment

Figure 9.1: Key oceans management statutes and institutions

There is currently no agency at the ‘head’ and no agency at the ‘heart’ of Aotearoa New Zealand’s oceans management system.

Previous efforts to better integrate the oceans management system include the establishment of the Oceans Secretariat, in 2021, which was an inter-agency group of officials from DOC, MPI (including Fisheries NZ) and MFE. However, the Secretariat was dis-established in 2024 on the basis that it was “unnecessary bureaucracy”.⁴

Various proposals have been put forward on how to strengthen the oceans institutional framework. They have included an independent Oceans Commission, an Oceans Agency, and a new Moana Aotearoa Ministry⁵ or Ministry of Oceans Affairs⁶. The pros and cons of a range of options have been usefully evaluated by Mcpherson and Jorgensen,⁷ although we note that the conclusions are necessarily dependent on assumptions made as to the precise design of each option. We explore the proposition of establishing an Oceans Commission further in this Chapter, and the other options in Chapter 12, as part of Phase Two reforms.

“Independent expert and regulatory agencies are widely perceived to constitute the hallmark of modern systems of regulation.”⁸ (Vibert)

The idea of establishing an independent oceans watchdog and champion has received considerable support over the years, and notably featured in two political party manifestos for the 2023 election (see spotlight below). Such an entity could provide a considered and long-term perspective on oceans matters, outside the political fray, bringing a “consensual, reflective and pluralistic”⁹ approach to bear. Importantly, it



Waimahara Wharf, Picton

could be a mechanism through which the strong iwi Māori interests in the oceans could be recognised and provided for, through appropriate membership of the Commission (ie if there were appointments from both iwi and the Crown).

Spotlight on support for an Oceans Commission

The National Party stated in its 2023 election environmental policy that “over the medium term” National will “consider establishing an Oceans Commission”. Its purpose will be “to advise the Government on strategies for sustainable ocean management and to foster relationships between the Crown, iwi and other stakeholders”.¹⁰

The Green Party, in its 2023 election environmental policy promised to create “a politically independent Oceans Commission” to “develop and implement an Ocean Strategy”, “administer a new \$100 million Moana Fund”, “set evidence-based ecological targets and indicators for the ocean” and “host an independent Science Advisory Group”.¹¹

The Lever Room, in its 2023 Ocean Roadmap for New Zealand, suggested “coordination through an independent institute has the potential to support positive outcomes for New Zealand, while providing resources for education, collaboration and considered dialogue. Such an Institute could also support coordination of New Zealand’s obligations and commitments under international treaties.”¹²

The Sustainable Seas National Science Challenge has called for the establishment of an Oceans Commission as a transitional option that would include a foresight unit, a monitoring unit, a partnership and funding division, a research and innovation division, and provide secretariat support to collaborative stakeholder groups.¹³

Professor Karen Scott has proposed an ‘Oceans Council’. It would be co-governed by Crown and Māori and “have overall responsibility for developing, reporting on and providing advice in relation to the New Zealand oceans policy”. It would report annually to government on implementation of the policy, “ensure” the policy is part of the decision-making of all relevant government departments, and help ensure the policy is a “living” and “evolving instrument”.¹⁴

Panel members at the EDS May 2025 Oceans Symposium generally supported the proposition of establishing an independent Oceans Commissions so long as it had ‘teeth’ and was not a purely advisory body.

Such a body could perform a range of functions. It could be tasked with preparing a draft National Oceans Strategy for approval by Ministers and then tracking implementation. In particular, as outlined in Chapter 6, such a document could set out national oceans environmental limits, objectives and targets against which progress could be tracked. This would not be too dissimilar to how the Climate Change Commission currently operates, under the Climate Change Response Act, where it monitors and reports on government's progress in meeting emission budgets and the overall 2050 emissions reduction target.¹⁵

We have also recommended (in Chapter 6) that the National Oceans Strategy describe how the principles of Te Tiriti are to be given effect to throughout the oceans management system and the Commission could be given a specific role of supporting and tracking implementation of these provisions.

The Commission could also have a broader role of providing specialist marine advice to government and councils as well as giving 'voice' to the oceans in the public arena. This could be similar to how Te Pou Tupua is "to act and speak for and on behalf of" Te Awa Tupua or the Whanganui River¹⁶ although the oceans would not necessarily be given legal personhood per se.

The Commission could oversee public investment in oceans research (identifying priorities and dispensing funds) and provide support to local and regional marine planning and restoration efforts. It could also oversee the development of guidelines on oceans matters, including those linked to the National MSP Framework and National MPA Strategy referred to above.

As highlighted at the 2025 EDS Oceans Symposium, it is important that the Oceans Commission is not a 'toothless tiger' and that it can ensure action. Inspiration for this can be taken from the Office of Environmental Protection recently established in the United Kingdom, which not only reviews government progress in achieving environmental targets (similar

to oceans targets to be set in the National Oceans Strategy as proposed above), but also holds public agencies to account in complying with environmental law (see spotlight).

Spotlight on United Kingdom Office of Environmental Protection

The Office of Environmental Protection was created under the UK Environment Act 2021. Its principle objective is environmental protection and improvement of the natural environment.¹⁷ Its functions include:

- Scrutinising government progress towards achieving environmental targets, including by evaluating the Environmental Improvement Plan and Environmental Principles Policy Statement required under the Act. It is required to publish an annual progress report on these matters.¹⁸
- Monitoring the implementation of environmental law and advising Ministers on any proposed change to environmental law or any other matter relating to the natural environment on which the Minister requires it to give advice.¹⁹
- Taking action against public authorities where they fail to implement or comply with environmental law. This is through a nuanced process that makes provision for public complaints, investigation of complaints, giving public authorities an information notice where a compliance failure is suspected, issuing a decision notice where the Office is satisfied (on the balance of probabilities) that the public authority has failed to comply with environmental law; and application to the court for an environmental review, but only where the failure to comply is serious.
- Applying for judicial review, or a statutory review of public authority conduct, where there is a serious failure to comply with environmental law and the matter is urgent.²⁰

The Office is a non-departmental public body, independent from government, although the government may issue guidance on enforcement policy which the Office must have "regard to".²¹ Funding is provided as a grant-in-aid, set out in a separate line to the overall estimate of the Department for Environment, Food and Rural Affairs, to ensure transparency. Its budget is funded on a multi-annual (five-year) basis and is ring-fenced during that spending period.



Portobello, Otago Harbour

There are several mechanisms that could help give the Oceans Commission teeth:

1. Giving the Oceans Commission delegated *decision-making powers* such as approving the National Oceans Strategy, marine spatial plans and MPAs (rather than just recommending approval to Ministers).
2. Providing the Oceans Commission with *power to appear in court as a party*, on behalf of the oceans, and to potentially take other parties to court to protect ocean health.

3. Tasking the Oceans Commission with *dispensing money from a dedicated fund* to support oceans research, MSP, the deployment of customary marine management tools and marine restoration. This could be through the establishment of an Oceans Restoration Fund as we proposed in 'Restoring the Sea'²² which could be similar to the multi-year appropriation 'Freshwater Improvement Fund' which was established in Vote Environment. Notably, a "Moana Fund" administered by the Ocean Commission for "iwi and hapū to research, develop, and implement mātauranga and tikanga-based tolls for marine management" was included in the Green Party election manifesto.²³

Spotlight on potential to strengthen existing mechanisms to create an oceans champion

Of all the proposals in this report, our recommendation to establish an Oceans Commission has received the most comment. We were sometimes posed the question "could these functions be undertaken by an existing authority?" The only existing bodies that could potentially be expanded to fulfil these functions are the Environmental Protection Authority (EPA) and the PCE.

The EPA currently undertakes a wide range of different hands-on management activities including for hazardous substances, marine activities in the EEZ, new organisms, industrial allocations for the Emissions Trading Scheme, RMA proposals, fast-track consenting and compliance, monitoring and enforcement. It is much more an operational agency than a watchdog or champion for the environment.

The PCE is more similar in nature to the Oceans Commission envisaged here, in its investigative and advisory roles. However, the PCE does lack 'teeth' and its advice is often ignored. It would be possible to morph the PCE into a more powerful watchdog, with stronger enforcement powers, and with a larger oceans function. However, we have two concerns about this approach. First, experience has shown that when the oceans is tacked onto other functions it inevitably gets insufficient attention (with regional councils, DOC and the PCE being good examples of this).

Secondly, given the unique context of deeply embedded cultural connections and Māori rights in the ocean, we consider a national body is needed that gives iwi Māori 'a seat around the table' when strategic decisions are made about oceans matters. It is notable that many oceans initiatives have stalled when Māori have not been sufficiently involved in their conception.



Pou, Mangahāwea Bay, Moturua Island, Bay of Islands

Recommendations for an Oceans Commission

- An Oceans Commission should be established under a new Oceans Act
- The Commission should be an independent statutory body reporting to Parliament (similar to the arrangements for the PCE)
- Half the members of the Commission should be appointed by Parliament on a cross-party basis and half should be appointed by a representative iwi grouping such as the National Iwi Chairs Forum
- The purpose of the Oceans Commission should be to secure the long-term health and productivity of the oceans
- The functions of the Oceans Commission should include the following:
 - (a) Prepare a draft National Oceans Strategy (including a National MSP Framework)
 - (b) Track and publicly report progress with implementing the Strategy
 - (c) Oversee the implementation of Te Tiriti principles within the oceans management system
 - (d) Prepare a draft National MPA Strategy
 - (e) Support the implementation of the National MSP Strategy and National MPA Strategy
 - (f) Provide specialist advice to central government agencies, councils, iwi and hapū on oceans matters
 - (g) Support oceans research including mātauranga Māori and mainstream science
 - (h) Speak on behalf of the oceans more generally
- The powers of the Oceans Commission should include:
 - (a) Approving the National MSP Framework and National MPA Strategy within the framework of the National Oceans Strategy (approved by Ministers). Consideration should also be given to providing the Commission with powers to approve MSP plans and MPAs
 - (b) Initiating independent investigations into oceans matters
 - (c) Appearing in court as a party on behalf of the oceans and initiating litigation to protect oceans health
 - (d) Dispensing funding from an Oceans Restoration Fund



Dolphin tourism boat, Kaikōura

Endnotes

1

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2

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3

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16

Te Awa Tupua (Whanganui River Claims Settlement) Act 2017, section 19(1)(a)

17

Environment Act 2021 (United Kingdom), section 23(1)

18

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19

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23

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10 Oceans Act



Plimmerton

An Oceans Act would be the vehicle to implement the mechanisms described above. These include a National Oceans Strategy, National Framework for MSP, Oceans Commission (and Oceans Agency and Oceans Ministry should those be pursued in Phase Two). As Scott (2021) proposed, the Oceans Act would not be all encompassing and force “far-reaching reform of other statutes that apply to oceans issues” but would rather provide “a framework for the oceans policy and associated planning to support coordination between and integration of existing processes”.¹

“If the system lacks clear goals for the future, we need to give it some, and ways to get there ... If it does not, we may become stuck in a politicised cycle focused on the pros and cons of the status quo, not the opportunities and risks we face in the future.”² (Severinsen et al, 2022)

Importantly, a new Oceans Act could enshrine in statute the overall purpose of the oceans management system (what it is aimed at achieving) and key principles that apply to all oceans management. As Macpherson et al (2023) note “there is a clear opportunity for the Crown to co-develop an approach to oceans law and policy in Aotearoa NZ that is more relational and reflective of the living nature of ecosystems, and that places oceans health at the centre of decision making”.³

They suggest that a set of “Fundamental Marine Principles” could act as an “anchor” for marine management, setting out an approach “that is more

relational and reflective of the living nature of ecosystems”. However, they do not go so far as to suggest what the Principles should be, emphasising that they need to be framed through “cross-sectoral and multiscale collaboration” and in a “Tiriti-compliant manner”.⁴

We agree that such core parts of new oceans legislation need careful and collaborative design. For this reason we suggest that an Interim Oceans Commission be tasked with developing draft provisions through wide consultation and deliberation. Some inspiration can be taken from how other countries have framed their aspirations (see spotlight).



Swimming with Hector's dolphins, Akaroa Harbour

Spotlight on oceans management aspirations in other jurisdictions

British Columbia's vision for its coastal marine area is "a diverse, productive and resilient coastal marine environment that is valued in its own right and that supports the prosperity, health and well-being of coastal communities now and in the future".⁵

The United Kingdom's vision for the marine environment is for "clean, healthy, safe, productive and biologically diverse oceans and seas".⁶

Australia's vision is "We commit to working together for a better ocean future; one where our coasts and ocean are healthy and resilient; where we make sustainable use of ocean resources; and where we can all share in the benefits that flow from it, now and in the future."⁷

The purposes of the Victorian Marine and Coastal Act 2018 are more focused on the operation of the system and include "to establish an integrated and co-ordinated whole-of-government approach to protect and manage Victoria's marine and coastal environment" and to "provide for integrated and co-ordinated planning, management, decision-making and reporting across catchment, coastal and marine areas".⁸

The objects of the New South Wales Coastal Management Act 2016 include:⁹

- (a) to protect and enhance natural coastal processes and coastal environmental values including natural character, scenic value, biological diversity and ecosystem integrity and resilience, and

- (b) to support the social and cultural values of the coastal zone and maintain public access, amenity, use and safety, and
- (c) to acknowledge Aboriginal peoples' spiritual, social, customary and economic use of the coastal zone, and
- (d) to recognise the coastal zone as a vital economic zone and to support sustainable coastal economies, and
- (e) to facilitate ecologically sustainable development in the coastal zone and promote sustainable land use planning decision-making ...

Recommendations for Oceans Act

The Oceans Act should:

- Set out a clear common purpose and set of principles that apply to all oceans management throughout Aotearoa New Zealand
- Require the preparation and regular review of a National Oceans Strategy
- Provide a framework for the MSP planning and implementation
- Establish an Oceans Commission
- Establish an Oceans Agency and Ministry for the Oceans if and when these are pursued as a Phase Two reform.

Endnotes

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2 Severinsen G, R Peart, B Rollinson, T Turner and P Parson, 2022, *The breaking wave: Oceans reform in Aotearoa New Zealand*, Environmental Defence Society, Auckland, at 139

3 Macpherson E, E Jorgensen, A Paul, H Rennie, K Fisher, J Talbot-Jones, J Hewitt, A Allison, J Banwell and A Parkinson, 2023, 'Designing law and policy for the health and resilience of marine and coastal ecosystems – lessons from (and for) Aotearoa New Zealand', *Ocean Development and International Law*, 50(4), 200-252, at 246

4 Ibid, at 246-247

5 British Columbia State Government, 2024, *B. C. coastal marine strategy*, British Columbia State Government, Victoria, at 3

6 HM Government, 2011, *UK marine policy statement*, The Stationery Office, London, at 10

7 Commonwealth of Australia, 2024, *Australia's draft sustainable ocean plan*, Commonwealth of Australia, Canberra, at 9

8 Victorian Marine and Coastal Act 2018, sections 1(a) and 1(b)

9 New South Wales Coastal Management Act 2016, section 3

11 Actions to implement to oceans reform



Motukopake Island, Firth of Thames

The above sections have set out a series of specific elements that we recommend be undertaken as part of an oceans reform programme. We set out below a timeline for implementation which is summarised in Figure 11.1. The actions will require additional resourcing, but this would serve to remedy (in part) the current paucity of investment in oceans management to date.



Commercial fishing vessels in Raglan Harbour

We have been talking about oceans reform for more than two decades. Now is the time to move past talking and into action.

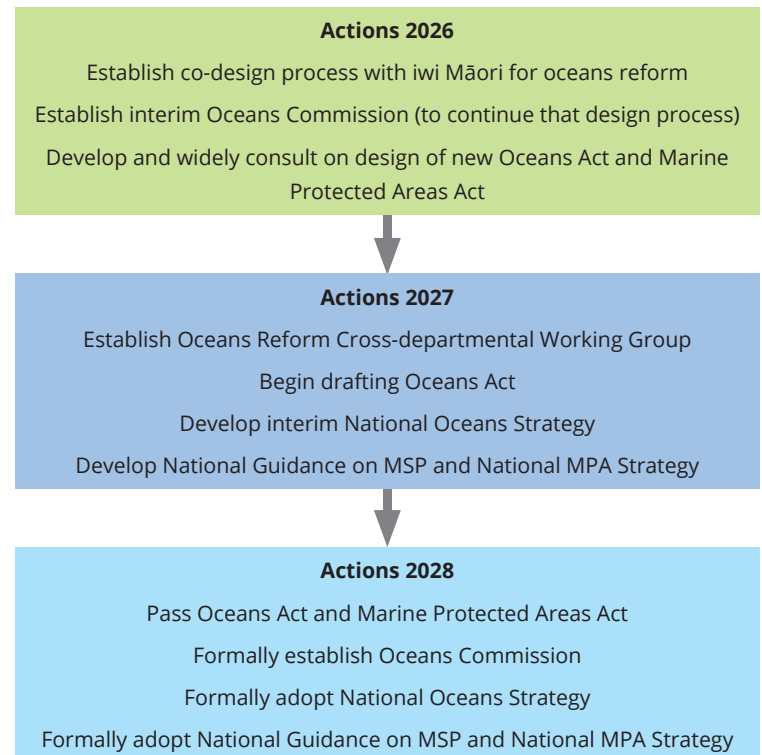


Figure 11.1 Timeline for implementation of oceans reform

11.1 Actions for 2026

The first action for 2026 would be to establish a co-design process with iwi Māori for oceans reform starting with the proposition of establishing an Oceans Commission or similar body, including designing its form, purpose and scope of functions. Next, an Interim Oceans Commission could be established as a ministerial advisory committee to continue the co-design process for the oceans reform process. It could comprise people who have a deep knowledge of oceans management from a range of perspectives (including oceans science) and include appointees recommended by the National Iwi Chairs Forum or similar along with those appointed by the Crown. The Interim Oceans Commission could be tasked with providing advice on the purpose and principles of the Oceans Act, the design of its other provisions, and the design of a new Marine Protected Areas Act. The advice should be made public and broadly consulted on.

The Interim Oceans Commission could operate in a similar manner to the Interim Climate Change Committee that was established in April 2018 to assist with developing climate policy. It was then replaced by the independent Climate Change Commission which was given a statutory basis when the amendment to the Climate Change Response Act was enacted in November 2019.

11.2 Actions for 2027

A new government will be formed after the late-2026 general election and should begin the task of drafting the new Oceans Act and Marine Protected Areas Act, building on the advice of the Interim Oceans Commission, and submissions made through the consultative process. A cross-departmental working group should be established to support the reform process under the oversight of the Ministers of Oceans, Fisheries, Conservation and Environment.

The Interim Oceans Commission could be tasked with developing an Interim National Oceans Strategy which would provide initial direction for the oceans management system as the new Oceans Act beds in. The Act should provide for its review within three years. Work should also commence on the development of National Guidance for MSP and the National MPA Strategy so these are in place to support implementation once the new provisions pass into law.

11.3 Actions for 2028

An exposure draft of the Oceans Bill and Marine Protected Areas Bill should be introduced into Parliament early in 2028, with an elongated select committee process in recognition of the significance of the policy

reforms. Once the Oceans Act has passed into law the new Oceans Commission can be formally established and take on its new (and strengthened) roles. The Interim National Oceans Strategy can be formally adopted under the Oceans Act (which will include the National MSP Framework) and the National MPA Strategy under the Marine Protected Areas Act. There will need to be deeming provisions under the legislation for this to happen, with provision that the documents are reviewed under the new statutory provisions within three or so years.

Recommendations on pathway to oceans reform

Actions for 2026:

- Establish co-design process with iwi Māori for oceans reform
- Establish an Interim Oceans Commission, as a ministerial advisory committee, to assist with the oceans reforms process including the design of the new Oceans Act and new Marine Protected Areas Act
- Widely consult on the Commission’s advice and proposals for the two statutes.

Actions for 2027:

- Establish a cross-departmental working group to support the oceans reform process
- Begin drafting a new Oceans Act
- Task the Interim Oceans Commission with developing an Interim National Oceans Strategy
- Commence work on developing the National Guidance on MSP and the National MPA Strategy.

Actions for 2028:

- Introduce an exposure draft of the Oceans Bill and Marine Protected Areas Bill into Parliament with an extended select committee process
- Pass the Oceans Act and Marine Protected Areas Act into law
- Establish the Oceans Commission
- Formally adopt the National Oceans Strategy under the Oceans Act
- Formally adopt the National MSP Strategy under the Marine Protected Areas Act.

12 Phase Two institutional reform



Ocean Beach, Hastings

A highly relevant factor affecting oceans institutional design, in terms of oceans regulation, is the future of local government which currently manage most activities within the territorial sea. The government has floated the idea of scrapping regional councils entirely as part of current resource management reforms which are due to take effect in 2027.¹ This could provide an opportunity to strengthen marine management as the performance of regional councils in this area has been patchy at best (see spotlight).

“Given the failure of the majority of councils to give effect to the 2010 NZCPS and more latterly the Court of Appeal decision, along with inadequate future funding commitment, the role of regional councils in managing coastal and marine biodiversity needs attention.”² (Ulrich et al, 2022)

Spotlight on performance of regional councils in marine management

Ulrich et al (2022) recently undertook an investigation into regional council management of marine biogenic habitats. They found that the majority of regional councils (9 out of 16) had not commenced or completed a review of their regional coastal plan within the last 10 years. Three councils had coastal plans which were 20 years or older.

Importantly the older plans do not give effect to the New Zealand Coastal Policy Statement 2010 which includes important bottom lines for marine species and habitats. Only one (Marlborough) of the 16 councils had voluntarily put in controls on fishing in their coastal plan to protect benthic habitats (in line with the *Motiti* Court of Appeal decision).³ Two other councils (Bay of Plenty and Northland) have had provisions imposed on them via the courts.⁴

Despite specific requests, the researchers were unable to obtain quantified information on resources expended by councils on marine management. Only two councils reported undertaking seabed habitat mapping (Marlborough and Auckland) something that is essential if important biogenic habitats are to be identified and protected. Almost all councils reported that funding for marine matters is sourced from general land-based rates and therefore would “compete with other environmental functions and statutory demands”. Only one council (Auckland) had instituted a targeted rate, and this was for a range of land-based as well as coastal environmental management issues, with no specific quantum assigned to marine. Only one council (Marlborough) was transitioning to coastal occupation charging to raise management funds from users of the coastal marine.⁵

It is not clear what the government might envisage for marine management if local government reorganisation were to occur, but it could result in the establishment of something along the lines of an

Oceans Agency, where both the EEZ and territorial sea were managed by a national oceans regulator.

A new Oceans Agency could potentially absorb the marine regulatory functions of former regional councils (under the RMA and potentially under the Natural Environment Act), the EPA (under the EEZ Act), Fisheries NZ (under the Fisheries Act), DOC (under the Fisheries Act, RMA, and marine functions under conservation legislation), Maritime NZ (under the Maritime Transport Act) and Biosecurity NZ (under the Biosecurity Act). This would enable much better integration between the different marine functions and reduce the current organisational complexity of having multiple marine-related entities. It would also support the development of a critical mass of expertise in oceans regulation. Staff within the existing

organisations could be absorbed into the new Agency through a careful transition programme to ensure current expertise is not lost.

In our view, this would be preferable to adding more oceans functions to an existing agency that has many other non-marine functions. A critical mass is needed, within government, in oceans management along with a dedicated focus.

To be effective, the Oceans Agency would need to establish regional offices around the country and work closely with catchment management to help address land-based impacts on the marine area. This could assist in bringing many oceans functions closer to the locations where they are undertaken. For example, it could help remedy the current situation where fisheries in the Marlborough Sounds is managed from an office in Dunedin.



Longlining, Hauraki Gulf

A further institutional evolution for the oceans could be the establishment of a new Ministry for the Oceans. For example, Professor Karen Scott has called for existing agencies and departments with an oceans mandate to be “amalgamated into the Ministry of Oceans Affairs. These would include, for example, Maritime New Zealand, fisheries (currently within Ministry for Primary Industries) and parts within the Department of Conservation, Ministry for the Environment and Ministry of Business, Innovation and Employment.”⁶

Scott argues that the advantage of physically co-locating these key government departments is in supporting greater integration “whereby officials setting catch limits under the quota management system are working alongside officials who are managing MPAs or developing climate change response strategies”. As Scott emphasises “no solution is perfect, but this proposal potentially avoids the pitfalls of establishing a new and potentially competing institution, as trialled in Australia, and providing a mandate to an existing institution with insufficient new powers, as is the case in Canada.”⁷

Macpherson et al (2023) support the proposal for a Ministry for the Oceans to provide “whole-of-government leadership, oversight, coordination and alignment of marine policy consistent with the *Tiriti* partnership”. They provisionally name it ‘Moana Aotearoa Ministry’.⁸ This is all similar in approach to our proposal above to establish an Oceans Agency, except that a Ministry could bring together policy as well as oceans regulation.

Establishing a Ministry for the Oceans to integrate marine policy, to support an Oceans Agency which would serve as a regulator, and to work with the Oceans Commission as the oceans expert body and watchdog would comprise a transformation of the oceans institutions. It would also provide a direct line of accountability to the Minister of Oceans.

Recommendations for Phase Two institutional reform

We recommend, as a Phase Two institutional reform process, the establishment of a national Oceans Agency, with a regional presence, which brings together current oceans regulatory functions. This includes:

- Functions within the coastal marine area under the RMA (and prospective Natural Environment Act) currently undertaken by regional and unitary councils
- Functions within the EEZ under the EEZ Act undertaken by the EPA
- Functions under the Fisheries Act undertaken by Fisheries NZ
- Functions under the Fisheries Act, within the coastal marine area under the RMA, and marine functions under conservation legislation undertaken by DOC
- Functions under the Maritime Transport Act undertaken by Maritime NZ
- Functions under the Biosecurity Act for marine biosecurity undertaken by Biosecurity NZ
- Functions under the Crown Minerals Act in the marine environment undertaken by NZ Petroleum and Minerals.

The proposal to establish a Ministry for the Oceans also has merit and should be further investigated as part of longer-term oceans institutional strengthening. It would report directly to the Oceans Minister and bring together oceans policy advice functions. It would also oversee and support the regulatory work of the Oceans Agency.

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13 Conclusions and summary of recommendations



Point Chevalier Beach, Auckland

Aotearoa New Zealand's oceans are large, diverse and extremely valuable. They support most of the country's wildlife, a sizeable blue economy, and have strong cultural and social values. Over the years, there have been numerous reports and scientific papers that essentially reach the same conclusions: our oceans management system is not up to the job of managing the oceans well and we need to urgently fix it. The purpose of this report has been to set out an oceans reform pathway so we can get on with the job. The various recommendations in the chapters above are set out below.

Recommendations for National Oceans Strategy

We recommend that a new Oceans Act require the promulgation of a National Oceans Strategy. This will apply to the country's entire marine realm (coastal marine area, EEZ and extended continental shelf). The Oceans Commission (established under the Oceans Act) would be tasked with preparing a draft Strategy for formal adoption by Government under the Oceans Act. The Strategy would include:

- An vision for oceans management
- A set of principles to guide oceans decision-making
- A set of national environmental limits and targets for the oceans

- A description of how international oceans obligations and commitments will be met
- A description of how the oceans management system information needs will be met, including investment in research and management of spatial databases
- A description of how the principles of Te Tiriti are to be given effect to throughout the oceans management system (including when co-governance and devolution should be considered)
- A National MSP Framework
- Methods to be adopted to promote integrated oceans management (such as cross-party working groups)
- The results of future scanning to identify future oceans threats and opportunities
- A set of objectives to be achieved within the life of the Strategy (10 years) and interim targets (3 and 6 years) to address these
- A monitoring and reporting system to track progress in meeting the objectives and interim targets.

To ensure effectiveness, the Strategy would need to be given statutory recognition, such as through requiring all oceans decision-makers to 'pay particular regard to', 'not be inconsistent with' or 'give effect to' it. Some parts of the Strategy could be given stronger legal force than others. Careful consideration will be needed as to how it will interact with existing statutory provisions and policies impacting the oceans.

The Strategy should be a living document, with a requirement to review more frequently than 10 years, if it is clear that the objectives will not be met. The Oceans Commission should be tasked with tracking Government progress in meeting the objectives and interim targets.

Recommendations for National MSP Framework

- The Oceans Act should require the preparation of a National MSP Framework
- A draft Framework should be prepared by the Oceans Commission for approval by the Minister of Oceans
- The Framework should address the scale and scope of MSP, initiation of MSP planning, the plan-making process, plan approval and implementation. It should provide considerable scope for local variation, including in the constitution of the plan-making body, while meeting minimum national requirements
- The Framework should make clear that iwi or hapū are either to lead or at least be partners in the plan-making process, which should incorporate tikanga and mātauranga Māori (where made available)
- The National MSP Framework should be supported by MSP Guidelines prepared by the relevant Ministry (MFE in the first instance but eventually the Oceans Agency or Ministry for the Oceans if established)
- Funding and technical support should be made available to regional/local MSP planning processes
- MSP plans should be approved by the Minister for Oceans (or Oceans Commission) and have statutory effect on decision-making within the area
- MSP plans should be regularly reviewed and updated

Recommendations on new Marine Protected Areas Act

Promulgate a new Marine Protected Areas Act to replace the Marine Reserves Act, incorporating the following design characteristics:

- Spatial application to include the territorial sea and EEZ
- Require the preparation of a National MPA Strategy
- Establish a Science and Mātauranga Māori Advisory Board (which could sit within the Oceans Commission) to support the development and implementation of the Strategy
- Provide for a range of MPA types including marine reserves, marine sanctuaries, marine restoration areas, and multi-use marine parks
- Ensure meaningful iwi Māori involvement in all stages of MPA design, creation and management, adopt co-design where possible, respect Te Tiriti rights and provide for non-commercial customary practices
- Include a legislative test for when impacts of MPAs on other activities is 'unreasonable' and fair redress may be merited
- Ensure any impacts of displaced fishing effort are considered and addressed if necessary
- Provide for a collaborative process or an independent board of inquiry to make recommendations on the creation of MPAs
- The Ministers of Conservation and Oceans and Fisheries, or the Oceans Commission, should make the final decision on MPA creation
- Enable advisory and management bodies to be appointed for MPA management
- Review the National MPA Strategy every 10 years and provide for the periodic review of MPAs
- Provide for regular MPA monitoring, and a regular report on the state of the MPA network every 5 years, reviewing effectiveness and identifying gaps.

Recommendations for an Oceans Commission

- An Oceans Commission should be established under a new Oceans Act
- The Commission should be an independent statutory body reporting to Parliament (similar to the arrangements for the PCE)
- Half the members of the Commission should be appointed by Parliament on a cross-party basis and half should be appointed by a representative iwi grouping such as the National Iwi Chairs Forum
- The purpose of the Oceans Commission should be to secure the long-term health and productivity of the oceans
- The functions of the Oceans Commission should include the following:
 - a) Prepare a draft National Oceans Strategy (including a National MSP Framework)
 - b) Track and publicly report progress with implementing the Strategy
 - c) Oversee the implementation of Te Tiriti principles within the oceans management system
 - d) Prepare a draft National MPA Strategy
 - e) Support the implementation of the National MSP Strategy and National MPA Strategy
 - f) Provide specialist advice to central government agencies, councils, iwi and hapū on oceans matters
 - g) Support oceans research including mātauranga Māori and mainstream science
 - h) Speak on behalf of the oceans more generally
- The powers of the Oceans Commission should include:

- a) Approving the National MSP Framework and National MPA Strategy within the framework of the National Oceans Strategy (approved by Ministers). Consideration should also be given to providing the Commission with powers to approve MSP plans and MPAs
- b) Initiating independent investigations into oceans matters
- c) Appearing in court as a party on behalf of the oceans and initiating litigation to protect oceans health
- d) Dispensing funding from an Oceans Restoration Fund

Recommendations for Oceans Act

The Oceans Act should:

- Set out a clear common purpose and set of principles that apply to all oceans management throughout Aotearoa New Zealand
- Require the preparation and regular review of a National Oceans Strategy
- Provide a framework for the MSP planning and implementation
- Establish an Oceans Commission
- Establish an Oceans Agency and Ministry for the Oceans if and when these are pursued as a Phase Two reform.

Recommendations on pathway to oceans reform

Actions for 2026:

- Establish co-design process with iwi Māori for oceans reform process
- Establish an Interim Oceans Commission, as a ministerial advisory committee, to assist with the oceans reforms process including the design of the new Oceans Act and new Marine Protected Areas Act

- Widely consult on the Commission's advice and proposals for the two statutes

Actions for 2027:

- Establish a cross-departmental working group to support the oceans reform process
- Begin drafting a new Oceans Act
- Task the Interim Oceans Commission with developing an Interim National Oceans Strategy
- Commence work on developing the National Guidance on MSP and the National MSP Strategy

Actions for 2028:

- Introduce an exposure draft of the Oceans Bill and Marine Protected Areas Bill into Parliament with an extended select committee process
- Pass the Oceans Act and Marine Protected Areas Act into law
- Establish the Oceans Commission
- Formally adopt the National Oceans Strategy under the Oceans Act
- Formally adopt the National MSP Strategy under the Marine Protected Areas Act

Recommendations for Phase Two institutional reform

We recommend, as a Phase Two institutional reform process, the establishment of a national Oceans Agency, with a regional presence, which brings together current oceans regulatory functions. This includes:

- Functions within the coastal marine area under the RMA (and prospective Natural Environment Act) currently undertaken by regional and unitary councils
- Functions within the EEZ under the EEZ Act undertaken by the EPA
- Functions under the Fisheries Act undertaken by Fisheries NZ
- Functions under the Fisheries Act, within the coastal marine area under the RMA, and marine functions under conservation legislation undertaken by DOC
- Functions under the Maritime Transport Act undertaken by Maritime NZ
- Functions under the Biosecurity Act for marine biosecurity undertaken by Biosecurity NZ
- Functions under the Crown Minerals Act in the marine environment undertaken by NZ Petroleum and Minerals.

The proposal to establish a Ministry for the Oceans also has merit and should be further investigated as part of longer-term oceans institutional strengthening. It would report directly to the Oceans Minister and bring together oceans policy advice functions. It would also oversee and support the regulatory work of the Oceans Agency.

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Aotearoa New Zealand oceans are large, diverse and extremely valuable. They support most of the country's wildlife, a sizeable blue economy, and have strong cultural and social values. Although often perceived as wild and untouched, the oceans are experiencing profound and increasing impacts from human activity. It is the inshore coastal ecosystems that are degrading the most, due to multiple anthropogenic pressures from land and sea activities.

Over the years, there have been numerous reports and scientific papers that essentially reach the same conclusions. Our oceans governance system is not up to the job of managing the oceans well and we need to urgently fix it. In this report we have provided recommendations for how to do this. They include developing a National Oceans Strategy, National Marine Spatial Planning Framework, Marine Protected Areas Act and Oceans Act along with establishing an Oceans Commission to act as a champion for the ocean. The time has now long passed for talking – we need to get on with oceans reform.



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